

SENATE No. 2670

Senate, October 23, 2025 -- Text of the Senate amendment to the House Bill making appropriations for the fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects (House, No. 4615) (being the text of Senate document numbered 2655, printed as amended)

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 SECTION 1. To provide for supplementing certain items in the general appropriation act
2 and other appropriation acts for fiscal year 2025, the sums set forth in section 2 are hereby
3 appropriated from the General Fund or the Transitional Escrow Fund established in section 16 of
4 chapter 76 of the acts of 2021, as amended by section 4 of chapter 98 of the acts of 2022, unless
5 specifically designated otherwise in this act or in those appropriation acts, for the several
6 purposes and subject to the conditions specified in this act or in those appropriation acts, and
7 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,
8 2025. These sums shall be in addition to any amounts previously appropriated and made
9 available for the purposes of those items. These sums shall be made available through the fiscal
10 year ending June 30, 2026.

11 SECTION 2.

12 DISTRICT ATTORNEYS

13 Suffolk District Attorney's Office

14 0340-0100 Suffolk District Attorney.....\$700,000

15 District Attorneys' Association

16 0340-8908 District Attorneys' Wide Area Network.....\$90,663

17 EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE

18 1595-6153 Communications Access Trust Fund Transfer.....\$12,500,000

19 EXECUTIVE OFFICE OF EDUCATION

20 Department of Elementary and Secondary Education

21 1596-2422 School Meals.....\$12,000,000

22 Education and Transportation Fund...100%

23 EXECUTIVE OFFICE OF ENERGY AND ENVIRONMENTAL AFFAIRS

24 Office of the Secretary

25 1599-0093 Clean Water Trust Contract Assistance.....\$6,779,246

26 EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

27 Office of the Secretary

28 4000-0700 MassHealth Fee for Service Payments.....\$2,046,164,359

29 Department of Public Health

30 4590-0915 Public Health Hospitals.....\$18,500,000

31 EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY

32 Department of State Police

33 8100-1001 Department of State Police.....\$3,500,255

34 Department of Correction

35 8900-0001 Department of Correction Facility Operations.....\$7,184,865

36 SECTION 2A. To provide for certain unanticipated obligations of the commonwealth, to
 37 provide for an alteration of purpose for current appropriations, and to meet certain requirements
 38 of law, the sums set forth in this section are hereby appropriated from the General Fund or the
 39 Transitional Escrow Fund established in section 16 of chapter 76 of the acts of 2021, as amended
 40 by section 4 of chapter 98 of the acts of 2022, unless specifically designated otherwise in this
 41 section, for the several purposes and subject to the conditions specified in this section, and
 42 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,
 43 2025. Except as otherwise stated, these sums shall be made available through the fiscal year
 44 ending June 30, 2026.

45 EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE

46 Department of Revenue

47 1233-1818 For fiscal year 2023 and fiscal year 2024 payments due to cities and towns
 48 pursuant to section 5 of chapter 64N of the General Laws.....\$1,250,000

49 Marijuana Regulation Fund...100%

50 Reserves

51 1599-1214 For a reserve for expansion, upgrades or enhancements to staffing,
52 operations or infrastructure for new and existing facilities that treat men with an alcohol or
53 substance use disorder under sections 1 and 35 of chapter 123 of the General Laws; provided,
54 that the secretary of administration and finance may transfer funds from this item to state
55 agencies as defined in section 1 of chapter 29 of the General Laws.....\$14,000,000

56 OFFICE OF THE COMPTROLLER

57 Executive Office of Housing and Livable Communities

58 1595-0604 For an operating transfer to the Housing Preservation and Stabilization
59 Trust Fund established in section 60 of chapter 121B of the General Laws.....\$75,000,000

60 MASSACHUSETTS DEPARTMENT OF TRANSPORTATION

61 1596-2527 For the cost of snow and ice removal services incurred by the
62 Massachusetts Department of Transportation; provided, that funds in this item may be
63 transferred to the Massachusetts Transportation Trust Fund established in section 4 of chapter 6C
64 of the General Laws \$60,727,344

65 Education and Transportation Fund...100%

66 EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

67 Office of the Secretary

68 4000-0010 For direct supports to reproductive health care providers to maintain
69 continuity of access to services at risk of federal funding reductions including, but not limited to,
70 Medicaid reimbursements.....\$5,000,000

Department of Transitional Assistance

4400-0709 For operational enhancements at the department of transitional assistance in response to upcoming changes to the Supplemental Nutrition Assistance Program; provided, that the department shall expend funds for enhancements including, but not limited to, information technology and infrastructure improvements to reduce the commonwealth's payment error rate; provided further, that at the direction of the commissioner of transitional assistance, funds may be transferred from this item to item 4400-1000 of section 2 of the general appropriation act for fiscal year 2026 and fiscal year 2027; provided further, that not later than March 15, 2026, the department shall submit a report to the joint committee on children, families and persons with disabilities and the house and senate committees on ways and means detailing strategies for reducing payment error rates and summarizing departmental responses to recent policy changes to the Supplemental Nutrition Assistance Program; and provided further, that funds appropriated in this item shall be made available until June 30, 2027.....\$10,000,000

EXECUTIVE OFFICE OF EDUCATION

Department of Higher Education

1596-2528 For a reserve to provide financial assistance to Massachusetts students enrolled in and pursuing a program of higher education at any public institutions of higher education in the commonwealth; provided, that funds shall be expended to restore financial aid allocations to public institutions of higher education in fiscal year 2026 at an amount not less than that allocated in fiscal year 2025; provided further, that funds shall be expended to increase awards for MassGrant recipients in fiscal year 2026 at an amount not less than that allocated in

93 fiscal year 2025; provided further, that funds shall be expended to increase award allowances for
94 Pell Grant recipients in fiscal year 2026 at an amount not less than that allocated in fiscal year
95 2025; provided further, that funds shall be expended to restore the allowance of up to \$1,200 per
96 academic year, adjusted by number of credits, for books, supplies and other expenses for
97 students whose household income is at or below 125 per cent of the standard median income and
98 who are attending a community college program pursuant to section 5B of chapter 15A of the
99 General Laws; provided further, that funds may be expended for programs or activities during
100 summer months; and provided further, that at the discretion of the secretary of education, funds
101 may be transferred from this item to items 7070-0065, 1596-2414 and 1596-2501 of the general
102 appropriation act.....\$18,300,000

103 Education and Transportation Fund...100%

104 SECTION 2B. To provide for supplementing certain intragovernmental chargeback
105 authorizations in the general appropriation act and other appropriation acts for fiscal year 2025,
106 to provide for certain unanticipated intragovernmental chargeback authorizations, to provide for
107 an alteration of purpose for current intragovernmental chargeback authorizations and to meet
108 certain requirements of law, the sum set forth in this section is hereby authorized from the
109 Intragovernmental Service Fund established in section 2Q of chapter 29 of the General Laws for
110 the several purposes specified in this section or in the appropriation acts and subject to the
111 provisions of law regulating the disbursement of public funds for the fiscal year ending June 30,
112 2025. This sum shall be in addition to any amounts previously authorized and made available for
113 the purposes of this item. These sums shall be made available through the fiscal year ending June
114 30, 2026.

115 TREASURER AND RECEIVER-GENERAL

116 Office of the Treasurer and Receiver-General

117 0699-0018 Agency Debt Service Programs.....\$21,000,000

118 SECTION 2C.I. For the purpose of making available in fiscal year 2026 balances of
119 appropriations which otherwise would revert on June 30, 2025, the unexpended balances of the
120 appropriations listed below, not to exceed the amount specified below for each item, are hereby
121 re-appropriated for the purposes of and subject to the conditions stated for the corresponding
122 item in sections 2 or 2F of chapter 140 of the acts of 2024; provided, however, that for items
123 which do not appear in said sections 2 or 2F of said chapter 140 of the general appropriation act,
124 the amounts in this section are re-appropriated for the purposes of and subject to the conditions
125 stated for the corresponding item in sections 2 or 2A of this act or in prior appropriation acts.
126 Amounts in this section are re-appropriated from the fund or funds designated for the
127 corresponding item in said sections 2 or 2F of said chapter 140; provided, however, that for items
128 which do not appear in said sections 2 or 2F of said chapter 140, the amounts in this section are
129 re-appropriated from the fund or funds designated for the corresponding item in sections 2 to 2F,
130 inclusive, of this act or in prior appropriation acts. The unexpended balance of each
131 appropriation in the Massachusetts management accounting and reporting system with a
132 secretariat code of 01 or 17 is hereby re-appropriated for the purposes of and subject to the
133 conditions stated for the corresponding item in said section 2 of said chapter 140. The sums re-
134 appropriated in this section shall be in addition to any amounts available for said purposes.

135 JUDICIARY

136 Supreme Judicial Court

137	0320-0003	Supreme Judicial Court.....	\$400,000
138		Appeals Court	
139	0322-0100	Appeals Court.....	\$175,000
140		DISTRICT ATTORNEYS	
141		Northwestern District Attorney	
142	0340-0600	Northwestern District Attorney.....	\$225,000
143		District Attorneys' Association	
144	0340-9111	District Attorneys' Association.....	\$307,101
145		TREASURER AND RECEIVER-GENERAL	
146		Office of the Treasurer and Receiver-General	
147	0610-2000	Welcome Home Bill Bonus Payments.....	\$600,000
148		POLICE REFORM COMMISSIONS	
149	0800-0000	Massachusetts Police Officer Standards and Training	
150		Commission.....	\$73,853
151		OFFICE OF THE CHILD ADVOCATE	
152	0930-0100	Office of the Child Advocate.....	\$200,000
153	0930-0101	Center on Child Wellbeing and Trauma.....	\$1,900,000
154		CENTER FOR HEALTH INFORMATION AND ANALYSIS	

155	4100-0060	Center for Health Information and Analysis.....	\$693,500
156	4100-0063	Betsy Lehman Center.....	\$395,450
157	EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE		
158	Health Policy Commission		
159	1450-1200	Health Policy Commission.....	\$750,000
160	Reserves		
161	1599-4448	Collective Bargaining Reserve.....	\$34,000,000
162	EXECUTIVE OFFICE OF TECHNOLOGY SERVICES AND SECURITY		
163	1790-1700	Core Technology Services and Security.....	\$355,089
164	EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES		
165	Massachusetts Commission for the Deaf and Hard of Hearing		
166	4125-0100	Massachusetts Commission for the Deaf and Hard of	
167		Hearing.....	\$170,000
168	Department of Transitional Assistance		
169	4400-1000	Department of Transitional Assistance Administration and	
170		Operation.....	\$2,813,484
171	EXECUTIVE OFFICE OF VETERANS' SERVICES		
172	Veterans' Services		

173	1410-0630	Agawam and Winchendon Veterans'	
174	Cemeteries.....		\$185,000
175	Veterans' Home in Chelsea		
176	4180-0100	Veterans' Home in Chelsea Administration and	
177	Operations.....		\$916,018
178	Veterans' Home in Holyoke		
179	4190-0100	Veterans' Home in Holyoke Administration and	
180	Operations.....		\$150,018
181	MASSACHUSETTS DEPARTMENT OF TRANSPORTATION		
182	1596-2401	Federal Matching Funds.....	\$23,000,000
183	1596-2406	Regional Transit Funding and Grants.....	\$11,155,416
184	EXECUTIVE OFFICE OF ECONOMIC DEVELOPMENT		
185	Division of Insurance		
186	7006-0020	Division of Insurance.....	\$1,274,008
187	Massachusetts Marketing Partnership		
188	7008-0900	Massachusetts Office of Travel and Tourism.....	\$100,000
189	EXECUTIVE OFFICE OF HOUSING AND LIVABLE COMMUNITIES		
190	7004-0102	Homeless Individual Shelters.....	\$2,100,000

191 EXECUTIVE OFFICE OF EDUCATION

192 Department of Early Education and Care

193 3000-1000 Department of Early Education and Care.....\$7,500,000

194 Department of Elementary and Secondary Education

195 7061-9805 Teacher Diversity Initiative.....\$8,300,000

196 1596-2436 Mental Health Supports and Wraparounds.....\$4,657,078

197 Department of Higher Education

198 7066-0025 Performance Management Set Aside.....\$2,000,000

199 EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY

200 Department of State Police

201 8100-0515 New State Police Class.....\$9,600,000

202 Department of Fire Services

203 8324-0000 Department of Fire Services Administration.....\$560,750

204 8324-0050 Local Fire Department Projects and Grants.....\$250,000

205 SECTION 2C.II. For the purpose of making available in fiscal year 2026 balances of

206 retained revenue and intragovernmental chargeback authorizations which otherwise would revert

207 on June 30, 2025, the unexpended balances of the authorizations listed below, not to exceed the

208 amount specified below for each item, are hereby re-authorized for the purposes of and subject to

209 the conditions stated for the corresponding item in sections 2 to 2F, inclusive, of chapter 140 of
210 the acts of 2024; provided, however, that for items which do not appear in said sections 2 to 2F,
211 inclusive, of said chapter 140, the amounts in this section are re-authorized for the purposes of
212 and subject to the conditions stated for the corresponding item in sections 2 through 2F,
213 inclusive, of this act or in prior appropriation acts. Amounts in this section are re-authorized
214 from the fund or funds designated for the corresponding item in sections 2 to 2F, inclusive, of the
215 general appropriation act; provided, however, that for items which do not appear in sections 2 to
216 2F, inclusive, of the general appropriation act, the amounts in this section are re-authorized from
217 the fund or funds designated for the corresponding item in sections 2 to 2F, inclusive, of this act
218 or in prior appropriation acts. The sums re-authorized in this section shall be in addition to any
219 amounts available for those purposes.

220 MASSACHUSETTS COMMISSION AGAINST DISCRIMINATION

221 0940-0103 Equal Employment Opportunity Commission Retained
222 Revenue.....\$1,205,504

223 EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE

224 Operational Services Division

225 1775-0800 Chargeback for Purchase Operation and Repair of State
226 Vehicles.....\$200,000

227 EXECUTIVE OFFICE OF ECONOMIC DEVELOPMENT

228 Office of the Secretary

229 7002-0018 Chargeback for Economic Development IT

230 Costs.....\$3,846,468

231 EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY

232 Department of Correction

233 8900-0021 Chargeback for Prison Industries and Farm

234 Program.....\$430,000

235 SECTION 3. Section 10H of chapter 21A of the General Laws, as appearing in the 2024
236 Official Edition, is hereby amended by striking out, in line 33, the words “of \$10 per fish” and
237 inserting in place thereof the following words:- for a recreational fisher of \$10 per fish or \$5 per
238 pound of striped bass or for a commercial fisher of the market value of all catch seized and
239 labeled pursuant to section 12 not to exceed \$10,000.

240 SECTION 4. Section 3 of chapter 23I of the General Laws, as so appearing, is hereby
241 amended by striking out, in line 42, the word “Six” and inserting in place thereof the following
242 figure:- Five.

243 SECTION 5. Section 2HHHH of chapter 29 of the General Laws, as so appearing, is
244 hereby amended by inserting after the figure “71”, in lines 6 and 15, the following words:- ,
245 section 74E of chapter 112, section 18 of chapter 112A.

246 SECTION 6. Section 2YYYY of said chapter 29, as so appearing, is hereby amended by
247 striking out the second paragraph and inserting in place thereof the following paragraph:-

248 The secretary may expend, without further appropriation: (i) not more than \$160,000,000
249 per fiscal year from the fund to expand and support the residential treatment system to treat

individuals with a substance use disorder or co-occurring mental health and substance use disorder and to expand and increase access to the 24-hour diversionary system; (ii) not more than \$135,000,000 per fiscal year from the fund to reduce stigma, expand access, support implementation and increase competencies for medications for substance use disorder; (iii) not more than \$35,000,000 per fiscal year from the fund to support access to evidence-based recovery services through peer and paraprofessional services; and (iv) not more than \$85,000,000 per fiscal year from the fund to ensure appropriate assessment for levels of care utilizing American Society of Addiction Medicine or other evidence-based modalities and to support integration of physical health, mental health and substance use disorder care across all provider settings. To accommodate timing discrepancies between the receipt of revenues and related expenditures, the fund may incur expenses, and the comptroller shall certify for payment, amounts not to exceed the most recent revenue estimate as certified by the MassHealth director, as reported in the state accounting system. Amounts credited to the fund shall not be subject to further appropriation and money remaining in the fund at the end of a fiscal year shall not revert to the General Fund and shall be available for expenditure in the subsequent fiscal year.

SECTION 7. Section 2AAAAA of said chapter 29, as so appearing, is hereby amended by striking out the second paragraph and inserting in place thereof the following paragraph:-

There shall be credited to the fund: (i) any transfers from the Health Safety Net Trust Fund established in section 66 of chapter 118E; (ii) any revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund; (iii) an amount equal to any federal financial participation revenues claimed and received by the commonwealth for eligible expenditures made from the fund; and (iv) interest earned on any money in the fund. Money from the fund shall be expended for payments to providers that

qualify under an approved federal waiver and in accordance with said waiver. Amounts credited to the fund shall not be subject to further appropriation. At the end of each fiscal year, the secretary of health and human services shall determine, in the secretary's sole discretion, the amount of any money in the fund that is in excess of the money needed to make payments from the fund in accordance with said waiver; provided, however, that the money needed to make such payments shall include any money needed to make any payments that are unearned as of the end of such year but potentially earned in a subsequent year. Subject to the terms of said waiver: (i) for periods applicable to the waiver beginning on or after January 1, 2025, the secretary of health and human services shall transfer to the Health Safety Net Trust Fund established in said section 66 of said chapter 118E the state share of any such excess money, excluding any federal funds; and (ii) for periods applicable to the waiver through December 31, 2024, the secretary of health and human services shall transfer to said Health Safety Net Trust Fund the state share of any such excess money, multiplied by a fraction, the numerator of which is \$62,500,000 and the denominator of which is the total amount transferred to or deposited in the fund for such fund year, excluding federal funds. Money remaining in the fund at the end of a fiscal year shall not revert to the General Fund and shall be available for expenditure in subsequent fiscal years. To accommodate timing discrepancies between the receipt of revenue and related expenditures, the comptroller may certify for payment amounts not to exceed the most recent revenue estimates as certified by the secretary of health and human services to be transferred, credited or deposited under this section.

SECTION 8. Section 2TTTTT of said chapter 29 is hereby amended by striking out subsection (c), as appearing in section 51 of chapter 140 of the acts of 2024, and inserting in place thereof the following subsection:-

(c)(1) The secretary shall expend money in the fund, including all amounts credited to the fund, for payments to qualifying acute hospital providers under contract with the executive office of health and human services or under subcontracts with care organizations that contract with the executive office in connection with the MassHealth program as provided in this subsection.

(2) The secretary shall annually expend amounts from the fund averaging, for the 2-year period from October 1, 2025 to September 30, 2027, inclusive, not less than \$2,264,500,000 per year; provided, however, that all such payments shall fall into 1 of the following categories: (i) health equity incentive payments; (ii) clinical quality incentive payments; (iii) other incentive payments; (iv) rate payments for services provided to MassHealth members; or (v) targeted payments to: (A) freestanding pediatric acute hospitals; (B) nonprofit teaching acute hospitals that provide medical, surgical, emergency and obstetrical services and are affiliated with a state-owned medical school; (C) freestanding cancer hospitals; (D) the acute hospital that had the lowest statewide commercial relative price in fiscal year 2019 as reported by the center for health information and analysis; (E) the independent group 1 safety net hospital that had the largest percentile of operating loss in fiscal year 2022 as reported by the center for health information and analysis; (F) the acute hospital that had the highest statewide public payer mix in fiscal year 2023 as determined by the secretary; (G) the acute hospital affiliated with a health system with 2 or more critical access hospitals operating in the commonwealth in calendar year 2025, as determined by the secretary; or (H) to any non-state-owned public hospital in the commonwealth, as determined by the secretary. The secretary may determine funding allocations among and within each such category within a given year; provided, however, that such allocations shall be consistent with all approved federal waivers and state plan provisions; and provided further, that the secretary shall allocate an average of not less than \$1,280,000,000 per

year, for the 2-year period from October 1, 2025 to September 30, 2027, inclusive, for the rate payments described in clause (iv), with an average of not less than \$92,000,000 allocated for group 1 safety net hospitals for such 2-year period, an average of not less than \$460,000,000 allocated for group 2 safety net hospitals for such 2-year period and an average of not less than \$728,000,000 allocated across all acute hospitals for such 2-year period.

(3) Of the targeted payments described in clause (v) of paragraph (2), the secretary shall expend annually from the fund: (i) \$70,000,000 to freestanding pediatric acute hospitals, of which at least 98 per cent shall be paid to the freestanding pediatric hospital that had the largest volume of inpatient discharges in fiscal year 2019; (ii) \$35,000,000 to nonprofit teaching acute hospitals that provide medical, surgical, emergency and obstetrical services and are affiliated with a state-owned medical school; (iii) \$14,000,000 to the acute hospital that had the lowest statewide commercial relative price in fiscal year 2019 as reported by the center for health information and analysis; (iv) \$6,000,000 to freestanding cancer hospitals; (v) \$10,000,000 to the independent group 1 safety net hospital that had the largest operating percentile loss in fiscal year 2022 as reported by the center for health information and analysis; (vi) \$6,000,000 to the acute hospital that had the highest statewide public payer mix in fiscal year 2023, as determined by the secretary; (vii) \$6,000,000 to the acute hospital affiliated with a health system with 2 or more critical access hospitals operating in the commonwealth in calendar year 2025, as determined by the secretary; and (viii) \$2,000,000 to any non-state-owned public hospital in the commonwealth, as determined by the secretary.

(4) Of the incentive payments described in clauses (i) and (ii) of paragraph (2), the secretary shall make interim payments to qualifying hospitals based on the secretary's estimate of each such hospital's final payment for the measurement period. As soon as practicable after

the close of the measurement period, the secretary shall determine the final amount of each qualifying hospital's incentive payments and shall reconcile each hospital's interim payment with its final payment.

(5) If, in any fiscal year, the commonwealth fails to secure federal financial participation necessary to make expenditures described in this section, or if the total hospital assessment amount described in section 67 of chapter 118E is insufficient to support the distributions to the fund required to be made from the Health Safety Net Trust Fund established in section 66 of said chapter 118E, or if such distributions are otherwise not made due to limitations on federal matching, applicable payment ceilings or other restrictions under state or federal law, then the expenditures otherwise required to be made from the fund shall be reduced proportionally based on the total amount available for expenditure.

SECTION 9. Subsection (c) of section 2UUUUU of said chapter 29, as appearing in the 2024 Official Edition, is hereby amended by adding the following paragraph:-

(3) If, in any fiscal year, the commonwealth fails to secure federal financial participation necessary to make expenditures described in this section, or if the total hospital assessment amount described in section 67 of chapter 118E is insufficient to support the distributions to the fund required to be made from the Health Safety Net Trust Fund established in section 66 of said chapter 118E, or if such distributions are otherwise not made due to limitations on federal matching, applicable payment ceilings, or other restrictions under state or federal law, then the expenditures otherwise required to be made from the fund shall be reduced proportionally based on the total amount available for expenditure.

SECTION 10. Section 2FFFFFFF of said chapter 29, as so appearing, is hereby amended by striking out subsection (c) and inserting in place thereof the following subsection:-

(c) The secretary shall annually expend money in the fund, including all amounts credited to the fund, for payments to Medicaid managed care organizations, as such term is defined in section 64 of chapter 118E; provided, however, that such amounts expended annually shall be not less than the Medicaid managed care organization revenue amount, as such term is defined in said section 64 of said chapter 118E; and provided further, that such expenditures shall be consistent with all approved federal waivers and state plan provisions.

SECTION 11. Said chapter 29 is hereby further amended by inserting after section 2LLLLLL the following 2 sections:-

Section 2MMMMMM. There shall be established and set up on the books of the commonwealth a separate fund known as the Deficiency Reserve Fund. The fund shall be credited with: (i) appropriations or other money authorized or transferred by the general court and specifically designated to be credited to the fund; (ii) funds from public and private sources, including, but not limited to, gifts, grants and donations; and (iii) interest earned on any money in the fund. Amounts credited to the fund shall be expended, subject to appropriation, to fulfill existing financial obligations of the commonwealth with unanticipated deficiencies. Money remaining in the fund at the end of each fiscal year shall not revert to the General Fund. The fund shall not be subject to section 5C.

Section 2NNNNNN. (a) There shall be established and set up on the books of the commonwealth a separate, non-budgeted special revenue fund known as the Public Higher Education Student Support Fund, which shall be administered by the secretary of education. The

385 fund shall be credited with: (i) appropriations or other money authorized or transferred by the
386 general court and specifically designated to be credited to the fund; (ii) funds from public and
387 private sources, including, but not limited to, gifts, grants and donations; and (iii) interest earned
388 on any money in the fund.

389 (b) Amounts credited to the fund shall be expended, without further appropriation, to: (i)
390 supplement financial aid awards to students at public institutions of higher education to prevent a
391 reduction in aid relative to the amount awarded in the prior fiscal year or relative to amounts
392 established subject to appropriation in statute or regulation, which shall include, but not be
393 limited to, the maintenance of the no cost community college program under section 5B of
394 chapter 15A of the General Laws; (ii) supplement allocations to public institutions of higher
395 education for financial aid programs to prevent a reduction in allocation from the prior fiscal
396 year; or (iii) otherwise maintain financial aid benefits to students relative to prior year benefit
397 levels. The secretary of education shall provide notice to the secretary of administration and
398 finance, the clerks of the house of representatives and senate and the house and senate
399 committees on ways and means not less than 15 days prior to expending funds from the Public
400 Higher Education Student Support Fund, including, but not limited to, the purpose and amount of
401 each expenditure.

402 (c) The unexpended balance in the fund at the end of a fiscal year shall remain available
403 for expenditure in subsequent fiscal years. No expenditure made from the fund shall cause the
404 fund to be in deficit.

405 SECTION 12. Chapter 31 of the General Laws is hereby amended by adding the
406 following section:-

Section 79. Following their original appointment and oath as a permanent full-time environmental police officer in the police force of the office of law enforcement under section 10A of chapter 21A, a person shall perform the duties of such position on a full-time basis for a probationary period of 12 months before they shall be considered a full-time tenured employee in such position. The administrator, with the approval of the commission, may establish procedures to ensure the evaluation by appointing authorities, prior to the end of such probationary period, of the performance of persons appointed as police officers in such force. Unless otherwise provided by civil service rule, and with appropriate adjustments to the timing of performance evaluations called for therein, the second paragraph of section 34 shall apply to persons covered by this section.

SECTION 13. Section 1 of chapter 32 of the General Laws is hereby amended by striking out the definition of “Violent act injury”, as appearing in the 2024 Official Edition, and inserting in place thereof the following definition:-

“Violent act injury”, a catastrophic or life-threatening permanent bodily injury sustained as a direct and proximate result of a violent attack upon a person by means of a dangerous weapon, which is used in a manner intended to cause serious injury or death, including, but not limited to, a firearm, knife, automobile or explosive device.

SECTION 14. Paragraph (a) of subdivision (2) of section 26 of said chapter 32, as so appearing, is hereby amended by adding the following sentence:- This subdivision shall not apply to a member in service who is physically unable to perform the essential duties of the member’s job by reason of violent act injury.

SECTION 15. Said section 26 of said chapter 32, as so appearing, is hereby further amended by inserting after subdivision (2) the following subdivision:-

(2½) Section 7 shall apply to any member in service classified in Group 3 who is an officer of the department of state police if the rating board, after an examination of such officer by a registered physician appointed by the board, reports in writing to the state board of retirement that such officer is physically incapacitated for the performance of duty by reason of a violent act injury occurring during the performance and within the scope of the officer's duty and without contributory negligence on the officer's part and that such incapacity is likely to be permanent.

SECTION 16. Section 56 of chapter 41 of the General Laws, as so appearing, is hereby amended by striking out, in lines 38 to 41, inclusive, the words "or (ii) the payment of software licenses, software maintenance agreements or online subscription services for school curriculum prior to the fiscal year in which services shall be rendered" and inserting in place thereof the following words:- (ii) the payment of software licenses, software maintenance agreements or online subscription services for school curriculum prior to the fiscal year in which services shall be rendered; or (iii) the payment of estimates and fees issued by utilities for make-ready work to facilitate access to utility poles, conduits, ducts or rights-of way related to broadband infrastructure projects.

SECTION 17. Section 7 of chapter 66 of the General Laws, as so appearing, is hereby amended by adding the following sentence:- Subject to the Health Insurance Portability and Accountability Act of 1996, P.L. 104-191, the American Recovery and Reinvestment Act of 2009, P.L. 111-5, 42 C.F.R. Part 2, 42 U.S.C. 290dd-2 and 45 C.F.R. Parts 160, 162 and 164, all

records from state institutions for individuals with intellectual or developmental disabilities or mental health conditions in the commonwealth shall be open to public inspection and available for copying after the expiration of 75 years from creation of the record.

SECTION 18. Subsection (a) of section 24N of chapter 111 of the General Laws, as so appearing, is hereby amended by striking out the definition of “Routine childhood immunizations” and inserting in place thereof the following definition:-

“Routine childhood immunizations”, immunizations for children until their nineteenth birthday as determined by the commissioner.

SECTION 19. Subsection (c) of said section 24N of said chapter 111, as so appearing, is hereby amended by striking out the last 5 sentences and inserting in place thereof the following words:- The council shall recommend the types of vaccines to be purchased based on a list of routine childhood immunizations and shall take into account provider preference, cost, availability and other factors as determined by the council. The commissioner shall recommend the amount of funding needed each fiscal year by calculating the total non-federal program cost. The council shall make recommendations to the commissioner on whether the commissioner may authorize provider choice of more than 1 comparable brand or type for a routine childhood immunization vaccine. In its recommendations, the council shall examine the feasibility, costs and benefits of authorizing provider choice, provide a schedule of the cost of each comparable brand or type of a vaccine recommended for provider choice and demonstrate that the estimated vaccine cost of authorizing provider choice would not be substantially greater than the estimated vaccine cost of purchasing a single brand or type of a vaccine. The commissioner of public

471 health shall determine the final vaccines to be purchased. The council shall also consider other
472 vaccine-related questions presented by the commissioner.

473 There shall be a committee on immunization protocols consisting of a pediatric
474 epidemiologist licensed to practice in the commonwealth to be appointed by the commissioner of
475 public health and the following members of the vaccine program advisory council established
476 pursuant to this subsection: the commissioner of public health or a designee, who shall serve as
477 chair; the medical director of the universal immunization program of the department of public
478 health established under section 24I; the member of the Massachusetts Medical Society; the
479 member of the Massachusetts Chapter of the American Academy of Pediatrics; the member of
480 the Massachusetts Academy of Family Physicians; and the 3 physicians licensed to practice in
481 the commonwealth who have expertise in the area of childhood vaccines. The committee shall
482 recommend to the commissioner a list of routine childhood immunizations.

483 SECTION 20. Said section 24N of said chapter 111, as so appearing, is hereby further
484 amended by striking out, in lines 109 to 111, inclusive, the words “Advisory Committee on
485 Immunization Practices of the Centers for Disease Control and Prevention” and inserting in place
486 thereof the following word:- commissioner.

487 SECTION 21. Section 12C of chapter 112 of the General Laws, as so appearing, is
488 hereby amended by striking out, in line 1, the words “physician or nurse” and inserting in place
489 thereof the following words:- physician, nurse or other health care professional licensed under
490 this chapter or otherwise authorized within their scope of practice.

491 SECTION 22. Said chapter 112 of the General Laws is hereby further amended by
492 inserting after section 74D the following section:-

Section 74E. (a) The board of registration in nursing may obtain a state and national fingerprint-based criminal background check, as authorized by Public Law 92-544, to determine the suitability of an applicant for a license to practice nursing pursuant to sections 74, 74A, 76 and 80B.

(b) Registered nurses subject to background checks pursuant to this section shall be individuals who hold ultimate responsibility for direct and indirect nursing care and are seeking: (i) licensure as a registered nurse pursuant to this chapter; and (ii) to provide nursing care, health maintenance, teaching, counseling, planning and restoration for optimal functioning and comfort of patients they serve within the commonwealth. For the purposes of this section, “advanced practice registered nurse” shall mean a registered nurse authorized by the board of registration in nursing to perform an expanded scope of practice when caring for patients in the commonwealth consistent with section 80B.

(c) Licensed practical nurses subject to background checks pursuant to this section shall be individuals who are seeking: (i) licensure as a practical nurse pursuant to this chapter; and (ii) to provide nursing care and health maintenance services to patients within the commonwealth.

(d) An individual applying to the board of registration in nursing for a license to practice nursing shall submit a full set of fingerprints to the identification section of the department of state police to obtain a state and national fingerprint-based criminal background check, as authorized by Public Law 92-544, to determine the suitability of any applicant for licensure.

(e) Fingerprints submitted pursuant to this section shall be used by the department of state police to conduct a state criminal history check and forwarded to the Federal Bureau of Investigation for a national criminal history check in accordance with the policies and procedures

established by the state identification section of the department of state police and by the department of criminal justice information services. Fingerprint submissions may be retained by the Federal Bureau of Investigation, the state identification section of the department of state police and the department of criminal justice information services to assist the board of registration in nursing to ensure the continued suitability of these licensees and persons subject to criminal background checks under this section. The department of criminal justice information services may disseminate the results of the state and national criminal background checks to authorized staff employed by the department of public health and board of registration in nursing.

(f) Each applicant shall pay a fee, as established by the secretary of administration and finance, in consultation with the secretary of public safety and security, to offset the costs of operating and administering a fingerprint-based criminal background check system. The secretary of administration and finance, in consultation with the secretary of public safety and security, may increase the fee accordingly if the Federal Bureau of Investigation increases its services fees for processing fingerprint background checks. Any fees collected from fingerprinting activity under this section shall be deposited into the Fingerprint-Based Background Check Trust Fund established in section 2HHHH of chapter 29.

(g) The board of registration in nursing may use the results of the criminal history record check solely for the purpose of determining the applicant's eligibility for a license to practice nursing pursuant to sections 74, 74A, 76 and 80B. The department of public health and board of registration in nursing shall not disseminate the criminal history record check information to any other entity.

537 (h) The department of public health and board of registration in nursing may receive all
538 available criminal offender record information, juvenile adjudications and delinquency matters,
539 sealed records and the results of checks of state and national criminal history information
540 databases under Public Law 92-544. Upon receipt of the results of the state and national criminal
541 background checks, the department of public health, board of registration in nursing and
542 authorized staff shall treat the information according to sections 167 to 178, inclusive, of chapter
543 6 and the regulations thereunder regarding criminal offender record information.

544 (i) The board of registration in nursing may promulgate regulations necessary to carry out
545 this section.

546 SECTION 23. Sections 1 to 5, inclusive, of chapter 113 of the General Laws are hereby
547 repealed.

548 SECTION 24. Section 64 of chapter 118E of the General Laws, as appearing in the 2024
549 Official Edition, is hereby amended by striking out the definition of “Assessed charges” and
550 inserting in place thereof:-

551 "Assessed charges", gross patient service revenue attributable to all patients less gross
552 patient service revenue attributable to Title XVIII, XIX and XXI programs, as such revenues are
553 reported to the center for health information and analysis and as determined by the secretary.

554 SECTION 25. Said section 64 of said chapter 118E, as so appearing, is hereby further
555 amended by striking out the definition of “Managed care organization reinvestment revenue
556 amount” and inserting in place thereof the following 3 definitions:-

“Managed care organization services assessment rate”, the rate calculated annually by dividing the non-Medicaid managed care organization revenue amount by the total managed care organization services subject to assessment that are not Medicaid managed care organization services subject to assessment.

“Medicaid managed care organization revenue amount”, an amount calculated annually by multiplying the Medicaid managed care organization services subject to assessment by the managed care organization services assessment rate.

“Non-Medicaid managed care organization revenue amount”, an amount equal, for each calendar year, to the sum of the following in the same year less \$20,000,000: (i) the health safety net managed care organization revenue amount; (ii) the Massachusetts Child Psychiatry Access Project revenue amount; (iii) the immunization revenue amount; (iv) the health policy commission revenue amount; (v) the center for health information and analysis revenue amount; (vi) the amount transferred, pursuant to section 66, to the Behavioral Health Access and Crisis Intervention Trust Fund established in section 2WWWW of chapter 29; and (vii) the amounts necessary to incorporate prospectively all adjustments or reconciliations to account for under-assessments in the prior year.

SECTION 26. Said section 64 of said chapter 118E, as so appearing, is hereby further amended by striking out the definition of “Total managed care organization services assessment amount” and inserting in place thereof the following definition:-

“Total managed care organization services revenue amount”, an amount equal, for each calendar year, to the sum of the following in the same year: (i) the Medicaid managed care

organization revenue amount; and (ii) the non-Medicaid managed care organization revenue amount.

SECTION 27. Said section 64 of said chapter 118E, as so appearing, is hereby further amended by striking out, in line 189, the figure “\$1,484,050,000” and inserting in place thereof the following figure:- \$1,534,050,000.

SECTION 28. Section 66 of said chapter 118E, as so appearing, is hereby amended by striking out, in lines 55 and 56, the words “managed care organization reinvestment” and inserting in place thereof the following words:- Medicaid managed care organization.

SECTION 29. Said section 66 of said chapter 118E, as so appearing, is hereby further amended by striking out, in lines 85 and 86, the words “total managed care organization services assessment” and inserting in place thereof the following words:- non-Medicaid managed care organization revenue.

SECTION 30. Said section 66 of said chapter 118E is hereby further amended by striking out subsection (b), as so appearing, and inserting in its place thereof the following 2 subsections:-

(b) The fund shall consist of: (i) all amounts paid by hospitals and managed care organizations under sections 67 and 68; (ii) all appropriations for the purpose of payments to acute hospitals or community health centers for health services provided to uninsured and underinsured residents; (iii) any transfers from the Commonwealth Care Trust Fund established in section 2000 of chapter 29; (iv) any transfers from the Safety Net Provider Trust Fund established in section 2AAAAA of chapter 29; (v) any transfers from the Hospital Investment and Performance Trust Fund established in section 2TTTTT of chapter 29; (vi) any transfers

600 from the Managed Care Organization Services Reinvestment Fund established in section
601 2FFFFFF of chapter 29; and (vii) all property and securities acquired by and through the use of
602 money belonging to the fund and all interest thereon. There shall also be credited to the fund an
603 amount equal to any federal financial participation claimed and received by the commonwealth
604 for eligible expenditures made from the fund and financed by money transferred from the
605 Hospital Investment and Performance Trust Fund established in section 2TTTTT of chapter 29,
606 the Managed Care Organization Services Reinvestment Fund established in section 2FFFFFF of
607 chapter 29, or from the Safety Net Provider Trust Fund established in section 2AAAAA of
608 chapter 29. To accommodate timing discrepancies between the receipt of such revenue and
609 related expenditures, the comptroller may certify for payment amounts not to exceed the most
610 recent revenue estimates as certified by the secretary of health and human services to be
611 transferred, credited or deposited under this subsection. Annually, the office shall transfer from
612 the non-federal money in the fund: (A) \$149,300,000 to the Safety Net Provider Trust Fund
613 established in section 2AAAAA of chapter 29; (B) \$1,041,170,000 to the Hospital Investment
614 and Performance Trust Fund established in section 2TTTTT of chapter 29; (C) \$115,500,000 to
615 the Population Health Investment Trust Fund established in section 2UUUUU of chapter 29; (D)
616 \$ 33,169,685 to the Non-Acute Care Hospital Reimbursement Trust Fund established in section
617 2WWWW of chapter 29; (E) an amount equal to the managed care reinvestment revenue amount
618 to the Managed Care Organization Services Reinvestment Fund established in section 2FFFFFF
619 of chapter 29; (F) an amount equal to the Massachusetts Child Psychiatry Access Project revenue
620 amount to the Massachusetts Child Psychiatry Access Project Fund established in section
621 2EEEEEE of chapter 29; (G) an amount equal to the health policy commission revenue amount
622 to the Healthcare Payment Reform Fund established in section 100 of chapter 194 of the acts of

2011; (H) an amount equal to the immunization revenue amount to the Vaccine Purchase Fund established in section 24N of chapter 111; (I) \$33,700,000 to the Behavioral Health Access and Crisis Intervention Trust Fund established in section 2WWWW of chapter 29; (J) an amount equal to the center for health information and analysis revenue amount to the Center for Health Information and Analysis Fund established in section 7A of chapter 12C; and (K) \$35,000,000 to the Essential Community Provider Trust Fund established in section 2PPP of chapter 29. The office shall expend amounts in the fund, except for amounts transferred to the Safety Net Provider Trust Fund, the Hospital Investment and Performance Trust Fund, the Population Health Investment Trust Fund, the Non-Acute Care Hospital Reimbursement Trust Fund, the Managed Care Organization Services Reinvestment Fund, the Massachusetts Child Psychiatry Access Project Fund, the Vaccine Purchase Fund, the Center for Health and Information Analysis Fund, the Healthcare Payment Reform Fund and the Behavioral Health Access and Crisis Intervention Trust Fund, for payments to hospitals and community health centers for reimbursable health services provided to uninsured and underinsured residents, consistent with the requirements of this section, section 69 and the regulations adopted by the office. The amount collected pursuant to clause (vii) of the definition of total managed care organization services revenue amount in section 64 shall be dedicated to reducing the shortfall, as described in subsection (b) of section 69, for the year prior to the assessment year. The office shall also annually expend money from the fund for the expenses of the executive office, including the health safety net office under subsection (a), for the administration of the health safety net and related assessments. The office shall also expend not more than \$6,000,000 annually from the fund for demonstration projects that use case management and other methods to reduce the liability of the fund to acute hospitals. Any annual balance remaining in the fund after these

646 payments have been made shall be retained in the fund and shall not revert to the General Fund.

647 All interest earned on the amounts in the fund shall be deposited or retained in the fund. The
648 director shall from time-to-time requisition from the fund amounts that the director considers
649 necessary to meet the current obligations of the office for the purposes of the fund and estimated
650 obligations for a reasonable future period.

651 (c) For each fiscal year, in the event that federal financial participation is not available for
652 any of the Medicaid expenditures made or to be made from this fund or from amounts transferred
653 from the fund pursuant to clauses (A), (B), (C), (D) or (K) of subsection (b), or hospital
654 assessment funding serving as the non-federal share of such expenditures is not available due to
655 the application of any federal law, regulation or policy, such as federal expenditure limits or
656 federal health care-related tax rules, or for any other reason, the amount of each such
657 forementioned transfer from the fund shall be reduced on a pro-rata basis by multiplying each
658 such expenditure or transfer by a fraction, the numerator of which is the aggregate amount of the
659 transfers from the fund pursuant to said clauses (A), (B), (C), (D) or (K) of said subsection (b)
660 for which federal financial participation will be available and the denominator of which is the
661 aggregate amount the expenditures and transfers from the fund pursuant to said clauses (A), (B),
662 (C), (D) or (K) of said subsection (b) that would otherwise be made.

663 SECTION 31. Said chapter 118E is hereby further amended by striking out section 67, as
664 so appearing, and inserting in place thereof the following section:-

665 Section 67. (a) Subject to all required federal approvals, including any required waivers
666 under 42 CFR 433.68, a hospital's annual liability to the fund shall be calculated in accordance

with this section. The annual aggregate liability of all hospitals to the fund shall equal the total hospital assessment amount.

(b) [reserved].

(c) The office shall promulgate regulations establishing an appropriate mechanism for enforcing each hospital's liability to the fund if a hospital does not make a scheduled payment to the fund.

(d) For the purposes of the assessment in this section, all hospitals in the commonwealth shall be divided into the following groups, as determined by the secretary: (i) large group 1 safety net hospitals which, for the purposes of this section, shall mean, any group 1 safety net hospital that had not less than 355 staffed beds in fiscal year 2022, as reported by the center for health information and analysis; (ii) small group 1 safety net hospitals which, for the purposes of this section, shall mean any group 1 safety net hospital that had less than 355 staffed beds in fiscal year 2022 as reported by the center for health information and analysis; (iii) large group 2 safety net hospitals which, for the purposes of this section, shall mean any group 2 safety net hospital that had not less than 355 staffed beds in fiscal year 2022 as reported by the center for health information and analysis; (iv) small group 2 safety net hospitals which, for the purposes of this section, shall mean any group 2 safety net hospital that had less than 355 staffed beds in fiscal year 2022 as reported by the center for health information and analysis; (v) freestanding pediatric acute hospitals; (vi) academic, teaching and specialty hospitals which, for the purposes of this section, shall mean an academic medical center, teaching hospital or specialty hospital as determined by the center for health information and analysis as of September 30, 2019, but excluding any high public payer hospital; (vii) private acute hospitals which, for the purposes of

689 this section, shall mean a private hospital licensed under section 51 of chapter 111 that contains a
690 majority of medical-surgical, pediatric, obstetric and maternity beds as defined by the department
691 of public health and operating as of September 30, 2019, but excluding any safety net hospital or
692 academic, teaching and specialty hospital; (viii) non-state public hospitals which, for the
693 purposes of this section, shall mean any non-state-owned public hospital in the commonwealth as
694 determined by the secretary; and (ix) non-acute hospitals which, for the purposes of this section
695 shall mean any nonpublic hospital licensed by the department of public health under said section
696 51 of said chapter 111; provided, however, that non-acute hospital shall not include an acute care
697 hospital under section 25B of said chapter 111 or a nonpublic hospital licensed as an inpatient
698 facility by the department of mental health under section 19 of chapter 19 and regulations
699 promulgated thereunder but not categorized as a class VII licensee under the regulations.

700 (e) Each of the groups described in subsection (d) shall be subject to the following
701 assessment rates: (i) large group 1 safety net hospitals shall be subject to a rate of 16.510per cent
702 for inpatient services and 8.000 per cent for outpatient services; (ii) small group 1 safety net
703 hospitals shall be subject to a rate of 14.500 per cent for inpatient services and 5.500 per cent for
704 outpatient services; (iii) large group 2 safety net hospitals shall be subject to a rate of 8.100 per
705 cent for inpatient services and 16.200 per cent for outpatient services; (iv) small group 2 safety
706 net hospitals shall be subject to a rate of 16.450 per cent for inpatient services and 9.100 per cent
707 for outpatient services; (v) freestanding pediatric acute hospitals shall be subject to a rate of
708 3.300 per cent for inpatient services and 2.600 per cent for outpatient services; (vi) academic,
709 teaching and specialty hospitals shall be subject to a rate of 4.675 per cent for inpatient services
710 and 1.290 per cent for outpatient services; (vii) private acute hospitals shall be subject to a rate of
711 8.299 per cent for inpatient services and 0.720 per cent for outpatient services; (viii) non-state

public hospitals shall be subject to a rate of 1.250 per cent for inpatient services and 1.250 per cent for outpatient services; and (ix) non-acute hospitals shall be subject to a rate of 3.300 per cent for inpatient services and 3.300 per cent for outpatient services; provided, however, that the office shall increase each such rate by the amount necessary to generate 50 per cent of the estimated cost as determined by the secretary of administration and finance, of administering the health safety net and related assessments in accordance with sections 65 to 69, inclusive. If hospital closures or hospital changes in status to a different type of provider would result in a reduction of total hospital assessment amount, the secretary may, by regulation, adjust the assessment rates to ensure the total hospital assessment amount is not reduced by more than \$10,000,000 on an annual basis; provided, however, that any such adjustments to the rates shall ensure the rates remain in the same proportion to each other as established herein. If the total hospital assessment amount collected for the hospital assessment year exceeds the amount necessary to support the non-federal share of amounts transferred pursuant to clauses (A), (B), (C), (D) or (K) of subsection (b) of section 66, the secretary shall, by regulation, adjust the assessment rates for the subsequent hospital assessment year to ensure the total hospital assessment amount does not exceed the amount necessary to support such expenditures; provided, however, that any such adjustments shall ensure the rates remain in the same proportion to each other as established herein and provided that any such adjustment does not jeopardize federal financial participation. In order to adjust the assessment rates by regulation as described in this subsection, the secretary of health and human services shall seek all required federal approvals the secretary deems necessary.

(f) The assessment rates described in subsection (e) shall be applied to each hospital's fiscal year 2023 assessed charges for inpatient and outpatient services as determined by the

secretary of health and human services; provided, however, that the term “assessed charges” shall have the meaning ascribed to it in section 64. The total of the resulting products shall equal a hospital’s annual assessment liability.

(g) Subject to receipt of all required federal approvals, the executive office shall implement the assessment structure described in this section and shall promulgate regulations, after consultation with Massachusetts Health and Hospital Association, Inc., necessary to support implementation of said assessment structure. In promulgating such regulations, and in consultation with Massachusetts Health and Hospital Association, Inc., the executive office shall, at a minimum: (i) specify an appropriate mechanism for determination and payment of an acute hospital's liability to the fund; (ii) identify the hospitals that belong to each group identified in subsection (d); (iii) specify an appropriate mechanism for the determination of a hospital’s liability in cases of merger or transfer of ownership; and (iv) specify an appropriate mechanism by which any amounts paid by a hospital in excess of a hospital’s total annual assessment liability may be refunded or otherwise credited to the hospital. The executive office shall also publish or otherwise make available to Massachusetts Health and Hospital Association, Inc. the data and methodology used in setting the tax rates and group classification prior to the promulgation of any such regulations.

(h) The secretary of health and human services may enforce the payment of required assessments under this section: (i) for hospitals licensed by the department of health, by notifying the department of the unpaid assessments and such information shall be considered by the department in determining suitability in accordance with section 51 of chapter 111 for the hospital or its affiliate provider entities; (ii) by offsetting payments from the office of Medicaid against the claims for payment by the delinquent hospital, against other hospitals or MassHealth-

contracted entities under common ownership as the delinquent hospital or against any successor in interest to the hospital or such provider entities under common ownership, in the amount of the delinquent fees owed, including any interest, penalties and reasonable attorneys' fees, and by transferring such funds into the fund; or (iii) creating, after demand for payment, a lien in favor of the commonwealth in an amount not to exceed the delinquent fees owed, including any interest, penalties and reasonable attorneys' fees, encumbering the building in which the delinquent hospital is located, encumbering the real property upon which the delinquent hospital is located, including fixtures, equipment or goods used in the operation of the delinquent hospital, or encumbering any real property in which the delinquent hospital holds an interest.

SECTION 32. Section 74 of said chapter 118E, as so appearing, is hereby amended by striking out subsection (k) and inserting in place thereof the following 2 subsections:-

(k) The council may contract with a provider of a pooled employer plan, as defined in 29 U.S.C. § 1002(43), on behalf of consumers and their personal care attendants.

(l) The council may perform other acts necessary or convenient to execute the powers expressly granted to it.

SECTION 33. Section 36 of chapter 123 of the General Laws, as so appearing, is hereby amended by inserting after the second sentence the following 3 sentences:- There shall be a rebuttable presumption that disclosure of patient records more than 50 years after the death of the patient is in the best interest of the patient; provided, however, that: (i) the records are facility records; and (ii) the requestor is a close relative or engaged in academic research. The department shall make best efforts to redact any personal identifying information of living individuals in such patient records in order to avoid undue invasion of privacy. The department

780 shall promulgate regulations in collaboration with the department of developmental services to
781 implement this rule.

782 SECTION 34. Section 17 of chapter 123B of the General Laws, as so appearing, is
783 hereby amended by inserting after the second sentence the following 3 sentences:- There shall be
784 a rebuttable presumption that disclosure of patient records more than 50 years after the death of
785 the patient is in the best interest of the patient; provided, that the: (i) records are facility records;
786 and (ii) requestor is a close relative or engaged in academic research. The department shall make
787 best efforts to redact any personal identifying information of living individuals in such patient
788 records in order to avoid undue invasions of privacy. The department shall promulgate
789 regulations in collaboration with the department of mental health to implement this rule.

790 SECTION 35. Said section 17 of said chapter 123B, as so appearing, is hereby further
791 amended by adding the following 3 sentences:- Each facility, subject to this chapter and section 7
792 of chapter 19B, shall maintain resident records for not less than 20 years after the closing of the
793 record due to discharge, death or last date of service. A facility shall not destroy such records
794 until after the retention period has elapsed and only upon notifying the department of public
795 health that the records will be destroyed; provided, however, that the department shall
796 promulgate regulations further defining an appropriate notification process. Each notice of
797 privacy practices by a facility shall include, but not be limited to: (i) information concerning the
798 provisions of this section; and (ii) the facility's records termination policy.

799 SECTION 36. Section 2 of chapter 130 of the General Laws, as so appearing, is hereby
800 amended by inserting after the word "chapter", in line 39, the following words:- or any rule or
801 regulation made under authority of this chapter.

802 SECTION 37. The second paragraph of section 21 of said chapter 130, as so appearing, is
803 hereby amended by adding the following sentence:- The refusal or failure to submit a statistical
804 report, or the knowing submission of a false statistical report, shall constitute a violation of this
805 chapter.

806 SECTION 38. The first paragraph of section 80 of said chapter 130, as so appearing, is
807 hereby amended by inserting after the first sentence the following sentence:- No person shall fish
808 for or take fish for commercial purposes in the coastal waters, or land raw fish, whether frozen or
809 unfrozen, in the commonwealth, for the purpose of sale, in violation of a commercial fisherman
810 permit.

811 SECTION 39. Section 12 of chapter 159A1/2 of the General Laws, as so appearing, is
812 hereby amended by inserting after the word “protection”, in line 66, the following words:- , the
813 department of energy resources, the Massachusetts clean energy technology center

814 SECTION 40. Section 69O1/2 of chapter 164 of the General Laws, as so appearing, is
815 hereby amended by striking out, in line 8, the word “62H” and inserting in place thereof the
816 following word:- 62L.

817 SECTION 41. Section 69T of said chapter 164, as so appearing, is hereby amended by
818 striking out, in line 7, the words “petition to construct such” and inserting in place thereof the
819 following words:- application for a consolidated permit for the clean energy infrastructure

820 SECTION 42. Section 69U of said chapter 164, as so appearing, is hereby amended by
821 striking out, in line 28, the word “(d)” and inserting in place thereof the following word:- (e).

SECTION 43. Section 69V of said chapter 164, as so appearing, is hereby amended by striking out, in line 21, the word “(g)” and inserting in place thereof the following word:- (h).

SECTION 44. Chapter 210 of the General Laws is hereby amended by striking out section 13, as so appearing, and inserting in place thereof the following section:-

Section 13. (a) The court shall, before decreeing a change of name, request a report from the commissioner of probation on the person filing the petition, and, upon entry of a decree, the name as established thereby shall be the legal name of the petitioner. The register may issue a certificate, under the seal of the court, of the name as so established. The court may, for good cause shown, require public notice of the petition to be given and any person to be heard thereon.

No decree shall be entered, however, until there has been filed in the court a copy of the birth record of the person whose name is sought to be changed, and, in case such person's name has previously been changed by decree of court or at marriage pursuant to section 1D of chapter 46, either a copy of: (i) the record of such person's birth amended to conform to the previous decree changing the person's name; (ii) such decree; or (iii) the record of marriage; provided, however, that the filing of any such copy may be dispensed with if the judge is satisfied that it cannot be obtained.

(b) The petition for name change, all pleadings, papers or documents filed in connection therewith and docket entries in the permanent docket and record books, online and otherwise, shall not be available for inspection unless the court, for good cause shown, otherwise orders or unless requested by the petitioner. The petition, reports, pleadings, papers, documents and permanent docket and record books shall be segregated.

843 SECTION 45. Chapter 239 of the General Laws is hereby amended by adding the
844 following section:-

845 Section 17. (a) As used in this section, the following words shall have the following
846 meanings unless the context clearly requires otherwise:

847 “Federal government shutdown”, any period in which all non-essential federal
848 government functions cease as a result of a failure to enact a regular appropriations bill or
849 continuing resolution.

850 “Impacted federal worker”, a resident of the commonwealth who, as a result of a federal
851 government shutdown, is furloughed or excepted pursuant to 31 U.S.C. § 1342 or any other
852 federal law requiring the person to continue to work without pay during a federal government
853 shutdown, including, but not limited to, service members or employees of the active-duty
854 military, national guard and reserve components.

855 “Non-essential eviction”, an eviction of an impacted federal worker for non-payment of
856 rent during a federal government shutdown.

857 “Tenant”, any resident whose tenancy began before a federal government shutdown.

858 (b) Notwithstanding any general or special law, rule, regulation or order to the contrary, a
859 landlord or owner of a property shall not, for the purposes of a non-essential eviction for a
860 residential dwelling unit: (i) terminate a tenancy; or (ii) send any notice, including a notice to
861 quit, requesting or demanding that a tenant of a residential dwelling unit vacate the premises if
862 the tenant provides notice and documentation to the landlord or owner that they are experiencing
863 a significant financial impact from a federal government shutdown. A landlord or owner of a

property shall include, on any complaint for summary process filed during a federal government shutdown, a statement that the landlord has not received notice that the defendant is an impacted federal worker.

(c)(1) Notwithstanding any general or special law, rule, regulation or order to the contrary, a court having jurisdiction over an action for summary process pursuant to this chapter, including the Boston municipal court department, shall not, in a non-essential eviction for a residential dwelling unit accept for filing a writ, summons or complaint unless the plaintiff includes in the complaint a statement that the defendant is not an impacted federal worker.

(2) Notwithstanding any general or special law, rule, regulation or order to the contrary, a court having jurisdiction over an action for summary process pursuant to this chapter, including the Boston municipal court department, shall not, in a non-essential eviction for a residential dwelling unit initiated during a federal government shutdown: (i) enter a judgment for a plaintiff for possession of a residential dwelling unit if the defendant provides the court with documentation that they are an impacted federal worker who suffered a significant financial impact due to a federal government shutdown; (ii) enter a default judgment for a plaintiff for possession of a residential dwelling unit unless the court has determined that the defendant is not an impacted federal worker; (iii) deny, upon the request of a defendant, a continuance of a summary process case of not more than 30 days if the defendant provides the court with documentation that they are an impacted federal worker who suffered a significant financial impact due to a federal government shutdown; or (iv) schedule a court event, other than a status hearing, if the defendant provides the court documentation that they are an impacted federal worker who suffered a significant financial impact due to a federal government shutdown.

(d) A deadline or time period for action by a defendant to a non-essential eviction for a residential dwelling unit initiated during a federal government shutdown, shall be tolled if the defendant provides the court documentation that they are an impacted federal worker who suffered a significant financial impact due to a federal government shutdown.

(e) A landlord shall not impose a late fee for non-payment of rent for a residential dwelling unit or furnish rental payment data to a consumer reporting agency, as defined in section 50 of chapter 93 of the General Laws, related to the non-payment of rent, if, not later than 30 days after the missed rent payment, the tenant provides notice and documentation to the owner or landlord that the tenant is an impacted federal worker and the non-payment of rent was due to a significant financial impact from a federal government shutdown. The executive office of housing and livable communities shall develop forms and recommendations for the provision of notice and documentation to a landlord that the non-payment of rent was due to a significant financial impact of a federal government shutdown.

(f) Nothing in this section shall relieve a tenant from the obligation to pay rent or restrict a landlord's or owner's ability to recover rent.

(g) Notwithstanding section 15B of chapter 186 or any other general or special law to the contrary, in order to address disruptions caused by a federal government shutdown, a lessor who received rent in advance for the last month of tenancy pursuant to said section 15B of said chapter 186, may access and utilize the funds received from said last month's rent in advance if the tenant is an impacted federal worker who is unable to pay rent as a result of a federal government shutdown. A lessor may utilize such funds to pay for expenses, which may include, but shall not be limited to, mortgage payments, utilities, repairs and required upkeep; provided,

908 however, that a lessor shall not deduct from said last month's rent in advance any amount to
909 account for the tenant's nonpayment of rent; provided further, that the lessor shall notify the
910 tenant in writing that: (i) the lessor utilized such funds before the last month of the tenancy; and
911 (ii) the lessor remains obligated to apply such funds to its intended application as rent for the last
912 month of tenancy.

913 (h) Nothing in this section shall be construed to relieve a lessor of their obligations to
914 apply said rent in advance to its intended application as rent for the last month of tenancy and to
915 pay to the tenant any interest due as required pursuant to section 15B of chapter 186.

916 (i) A landlord or owner shall be not be liable for actions taken in good faith reliance on
917 documentation provided by a tenant pursuant to this section.

918 (j) The executive office of housing and livable communities shall issue regulations and
919 guidance as necessary to implement this section.

920 (k) This section shall be in effect during a federal government shutdown until 30 days
921 after a federal government shutdown has ended; provided, however, that the governor may
922 postpone such expiration by not more than 75 days after a federal shutdown has ended; and
923 provided further, that any deadline or time period for action that is tolled under subsection (d)
924 shall begin to run upon the expiration date.

925 SECTION 46. Chapter 244 of the General Laws is hereby amended by adding the
926 following section:-

927 Section 42. (a) As used in this section, the following words shall have the following
928 meanings unless the context clearly requires otherwise:

929 “Federal government shutdown”, any period in which all non-essential federal
930 government functions cease as a result of a failure to enact a regular appropriations bill or
931 continuing resolution.

932 “Impacted federal worker”, a resident of the commonwealth who, as a result of a federal
933 government shutdown, is furloughed or excepted pursuant to 31 U.S.C. § 1342 or any other
934 federal law requiring the person to continue to work without pay during a federal government
935 shutdown, including, but not limited to, active-duty military, national guard and reserve
936 components.

937 “Mortgagor”, a person whose mortgage obligations began before a federal government
938 shutdown.

939 “Non-essential eviction”, an eviction of an impacted federal worker for non-payment of
940 rent during a federal government shutdown.

941 (b) Notwithstanding any other general or special law to the contrary, a creditor,
942 mortgagee or person having estate in the land mortgaged, a person authorized by a power of sale
943 pursuant to section 14 or right of entry or the attorney duly authorized by a writing under seal or
944 the legal guardian or conservator of such mortgagee or person acting in the name of such
945 mortgagee or person shall not, for the purposes of foreclosure of a residential property as defined
946 in section 35B that is not vacant or abandoned and for which the mortgagor is an impacted
947 federal worker or the tenants of the mortgagor are impacted federal workers: (i) cause notice of a
948 foreclosure sale to be published pursuant to said section 14; (ii) exercise a power of sale; (iii)
949 exercise a right of entry; or (iv) initiate a judicial or non-judicial foreclosure process; provided,
950 however, that the mortgagor shall provide notice and documentation that they are an impacted

federal worker or the tenants of the mortgagor are impacted federal workers and as a result the mortgagor is experiencing a significant financial impact from a federal government shutdown.

(c) A creditor or mortgagee shall grant a forbearance to a mortgagor of a mortgage loan for a residential property as defined in section 35B of the General Laws if the mortgagor submits a request to the mortgagor's servicer, which includes an attestation made under pains and penalties of perjury that the mortgagor is an impacted federal worker or the tenants of the mortgagor are impacted federal workers and as a result the mortgagor has experienced a significant financial impact from a federal government shutdown. The forbearance shall be for not more than 180 days. Fees or penalties beyond the amounts scheduled and calculated as if the mortgagor made all contractual payments on time and in full under the terms of the mortgage contract shall not accrue during the period of forbearance granted under this subsection. A payment subject to the forbearance shall be added to the end of the term of the loan unless otherwise agreed to by the mortgagor and mortgagee. Nothing in this subsection shall prohibit a mortgagor and mortgagee from entering into an alternative payment agreement for the payments subject to the forbearance. The mortgagee shall not furnish negative mortgage payment information to a consumer reporting agency related to mortgage payments subject to forbearance under this act; provided, however, that the mortgagee shall comply with the Fair Credit Reporting Act, 15 U.S.C. §§ 1681, et. seq.

(d) Nothing in this section shall be construed to relieve a mortgagor from the obligation to pay their mortgage or restrict the ability of a creditor, mortgagee, person having estate in the land mortgaged, a person authorized by a power of sale or right of entry, an attorney duly authorized or a person acting in the name of such mortgagee or person from recovering mortgage payments.

(e) Notwithstanding any general or special law to the contrary, a creditor or mortgagee shall not be required to grant a forbearance to a mortgagor of a mortgage loan for a residential property under subsection (b) if the mortgagor's request for such forbearance is made after the expiration date under subsection (g).

(f) A mortgagee or servicer shall not be liable for actions taken in good faith reliance on documentation provided by a mortgagor pursuant to this section.

(g) This section shall be in effect during a federal government shutdown until 30 days after a federal government shutdown has ended; provided, however, that the governor may postpone such expiration by not more than 75 days after a federal government shutdown has ended.

SECTION 47. Section 33 of chapter 268 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting after the word "revenue", in line 10, the following words:- or an officer or employee acting under the authority of the United States or any department, agency or officer thereof.

SECTION 48. Said section 33 of said chapter 268, as so appearing, is hereby further amended by striking out, in lines 11 to 13, inclusive, the words "shall be punished by a fine of not more than four hundred dollars or by imprisonment for not more than one year" and inserting in place thereof the following words:- shall be punished by a fine of not more than \$1,000 or by imprisonment for not more than 2 1/2 years.

SECTION 49. The fifth sentence of subsection (b) of section 83C of chapter 169 of the acts of 2008, as appearing in section 61 of chapter 179 of the acts of 2022, is hereby amended by

995 striking out the following words:- and shall specify that any subsequent solicitation shall occur
996 within 24 months of a previous solicitation.

997 SECTION 50. Chapter 209 of the acts of 2018, as most recently amended by chapter 364
998 of the acts of 2024, is hereby further amended by striking out section 89 and inserting in place
999 thereof the following section:-

1000 Section 89. There shall be established and set up on the books of the commonwealth a
1001 separate, non-budgeted special revenue fund called the Woodlands Partnership of Northwest
1002 Massachusetts Fund, which shall be administered by the Woodlands Partnership of Northwest
1003 Massachusetts Board established pursuant to section 91. Amounts credited to the fund shall be
1004 expended without further appropriation. There shall be credited into the fund revenues or other
1005 financing sources directed to the fund by appropriation or other monies authorized by the general
1006 court and specifically designated to be credited to the fund, any income derived from the
1007 investment of amounts credited to the fund and monies from the repayment of loans from the
1008 fund, funds from public or private sources, including, but not limited to, gifts, federal, state or
1009 private grants, donations, rebates and settlements received by the commonwealth that are
1010 specifically designated to be credited to the fund and all other amounts credited or transferred
1011 into the fund from any other source. Amounts credited to said fund shall be used solely for
1012 implementing the purposes and administration of the Woodlands Partnership of Northwest
1013 Massachusetts established pursuant to section 91. The unexpended balance in the fund at the end
1014 of a fiscal year shall remain available for expenditure in subsequent fiscal years. No expenditure
1015 from the fund shall cause the fund to be in deficit at any point.

1016 SECTION 51. Chapter 279 of the acts of 2018 is hereby amended by striking out the
1017 words “capital expenditure authorizations, grants” and inserting in place thereof the following
1018 words:- grants.

1019 SECTION 52. Chapter 4 of the acts of 2021 is hereby amended by striking out section 9
1020 and inserting in place thereof the following section:-

1021 Section 9. Notwithstanding any general or special law to the contrary, the bonds that the
1022 state treasurer may issue pursuant to section 34 of chapter 383 of the acts of 2020 shall be issued
1023 for a term not to exceed 30 years. All such bonds shall be payable not later than June 30, 2065,
1024 as recommended by the governor in a message to the general court dated August 14, 2025 under
1025 section 3 of Article LXII of the Amendments to the Constitution.

1026 SECTION 53. Item 7010-1192 of section 2 of chapter 126 of the acts of 2022 is hereby
1027 amended by striking out the figure “2025”, inserted by section 41 of chapter 248 of the acts of
1028 2024, and inserting in place thereof the following figure:- 2026.

1029 SECTION 54. Item 1599-6090 of section 2A of chapter 268 of the acts of 2022, as most
1030 recently amended by section 44 of chapter 248 of the acts of 2024, is hereby further amended by
1031 striking out the words “the June 21, 2022 fire in the city of Revere” and inserting in place thereof
1032 the following words:- fires in the Third Suffolk senatorial district.

1033 SECTION 55. Item 2000-0100 of section 2 of chapter 28 of the acts of 2023 is hereby
1034 amended by striking out the figure “2025”, as inserted by section 56 of chapter 14 of the acts of
1035 2025, and inserting in place thereof the following figure:-“2026”.

SECTION 56. Item 2810-0122 of said section 2 of said chapter 28 is hereby amended by striking out the figure “2025”, inserted by section 76 of chapter 248 of the acts of 2024, and inserting in place thereof the following figure:- 2026.

SECTION 57. Item 4000-0300 of said section 2 of said chapter 28 is hereby further amended by striking out the figure “2025”, inserted by section 79 of chapter 248 of the acts of 2024, and inserting in place thereof the following figure:- 2026.

SECTION 58. Item 7008-1116 of said section 2 of said chapter 28 is hereby amended by striking out the figure “2025”, inserted by section 101 of chapter 248 of the acts of 2024, and inserting in place thereof the following figure:- 2026.

SECTION 59. Item 1599-0514 of section 2A of chapter 77 of the acts of 2023 is hereby amended by inserting after the words “fiscal year 2025” the following words:- and in all subsequent fiscal years thereafter; provided further, that the executive office for administration and finance, in consultation with the executive office of housing and livable communities, shall provide a report to the clerks of the house of representatives and senate and the house and senate committees on ways and means detailing all fiscal year 2026 spending on the emergency housing assistance program since July 1, 2025 which had not been previously disclosed in the offices’ bi-weekly reports on the emergency housing assistance program and shall continue with all bi-weekly emergency assistance reporting as required under chapter 1 of the acts of 2025.

SECTION 60. Item 1233-2401 of section 2 of chapter 140 of the acts of 2024 is hereby amended by adding the following words:- ; provided, that notwithstanding any general or special law to the contrary, a city or town that received funding under this item in fiscal year 2024 and

1057 that remains eligible in fiscal year 2025 shall receive not less than the amount of funding that
1058 such city or town received under this item in fiscal year 2024.

1059 SECTION 61. Said item 1233-2401 of said section 2 of said chapter 140 is hereby further
1060 amended by striking out the figure “\$750,000” and inserting in place thereof the following
1061 figure:- \$1,185,432.

1062 SECTION 62. Item 1599-0026 of said section 2 of said chapter 140 is hereby amended
1063 by inserting after the word “Sharon” the following words:- and such funds shall be made
1064 available until June 30, 2026.

1065 SECTION 63. Said item 1599-0026 of said section 2 of said chapter 140 is hereby further
1066 amended by inserting after the word “improvements”, the third time it appears, the following
1067 words:- and such funds shall be made available until June 30, 2026.

1068 SECTION 64. Said item 1599-0026 of said section 2 of said chapter 140 is hereby further
1069 amended by inserting after the word “Abington” the following words:- and such funds shall be
1070 made available until June 30, 2026.

1071 SECTION 65. Said item 1599-0026 of said section 2 of said chapter 140 is hereby further
1072 amended by inserting after the word “common” the following words:- and such funds shall be
1073 made available until June 30, 2026.

1074 SECTION 66. Said item 1599-0026 of said section 2 of said chapter 140 is hereby further
1075 amended by inserting after the word “Middleton” the following words:- and such funds shall be
1076 made available until June 30, 2026.

1077 SECTION 67. Item 2810-0122 of said section 2 of said chapter 140 is hereby amended
1078 by inserting after the word “playground”, the second time it appears, the following words:- and
1079 such funds shall be made available until June 30, 2026.

1080 SECTION 68. Item 3000-4060 of said section 2 of said chapter 140 is hereby amended
1081 by adding the following words:-

1082 General Fund...83.94%

1083 High-Quality Early Education & Care Affordability Fund...16.06%

1084 SECTION 69. Item 7008-0900 of said section 2 of said chapter 140 is hereby amended
1085 by inserting after the word “valley” the following words:- and such funds shall be made available
1086 until June 30, 2026.

1087 SECTION 70. Item 7008-1116 of said section 2 of said chapter 140, as amended by
1088 section 65 of chapter 14 of the acts of 2025, is hereby further amended by inserting after the
1089 word “Sharon” the following words:- and such funds shall be made available until June 30, 2026.

1090 SECTION 71. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1091 is hereby further amended by inserting after the word “Lynn”, the second time it appears, the
1092 following words:- and such funds shall be made available until June 30, 2026.

1093 SECTION 72. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1094 is hereby further amended by inserting after the word “projects”, the fifth time it appears, the
1095 following words:- and such funds shall be made available until June 30, 2026.

1096 SECTION 73. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1097 is hereby further amended by inserting after the word “hospitals” the following words:- and such
1098 funds shall be made available until June 30, 2026.

1099 SECTION 74. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1100 is hereby further amended by inserting after the word “families”, the third time it appears, the
1101 following words:- and such funds shall be made available until June 30, 2026.

1102 SECTION 75. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1103 is hereby further amended by inserting after the word “prevention”, the second time it appears,
1104 the following words:- and such funds shall be made available until June 30, 2026.

1105 SECTION 76. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1106 is hereby further amended by inserting after the word “programming”, the twenty-first time it
1107 appears, the following words:- and such funds shall be made available until June 30, 2026.

1108 SECTION 77. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1109 is hereby further amended by inserting after the word “resources”, the third time it appears, the
1110 following words:- and such funds shall be made available until June 30, 2026.

1111 SECTION 78. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1112 is hereby further amended by inserting after the word “services”, the fifteenth time it appears, the
1113 following words:- and such funds shall be made available until June 30, 2026.

1114 SECTION 79. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1115 is hereby further amended by inserting after the word “Boston, Inc.”, the third time it appears,
1116 the following words:- and such funds shall be made available until June 30, 2026.

1117 SECTION 80. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1118 is hereby further amended by inserting after the word “maintenance”, the eighth time it appears,
1119 the following words:- and such funds shall be made available until June 30, 2026.

1120 SECTION 81. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1121 is hereby further amended by inserting after the word “epidemic” the following words:- and such
1122 funds shall be made available until June 30, 2026.

1123 SECTION 82. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1124 is hereby further amended by inserting after the word “training”, the sixth time it appears, the
1125 following words:- and such funds shall be made available until June 30, 2026.

1126 SECTION 83. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1127 is hereby further amended by inserting after the word “education”, the eleventh time it appears,
1128 the following words:- and such funds shall be made available until June 30, 2026.

1129 SECTION 84. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1130 is hereby further amended by inserting after the word “trips” the following words:- and such
1131 funds shall be made available until June 30, 2026.

1132 SECTION 85. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1133 is hereby further amended by striking out the words “for the beautification of the Norfolk street
1134 bridge area” and inserting in place thereof the following words:- and such funds shall be made
1135 available until June 30, 2026.

1136 SECTION 86. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1137 is hereby further amended by inserting after the word “town”, the sixth time it appears, the
1138 following words:- and such funds shall be made available until June 30, 2026.

1139 SECTION 87. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1140 is hereby further amended by inserting after the word “center”, the first time it appears, the
1141 following words:- and such funds shall be made available until June 30, 2026.

1142 SECTION 88. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1143 is hereby further amended by inserting after the word “veterans”, the second time it appears, the
1144 following words:- and such funds shall be made available until June 30, 2026.

1145 SECTION 89. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1146 is hereby further amended by inserting after the word “Middleton” the following words:- and
1147 such funds shall be made available until June 30, 2026.

1148 SECTION 90. Said item 7008-1116 of said section 2 of said chapter 140, as so amended,
1149 is hereby further amended by inserting after the word “Sutton” the following words:- and such
1150 funds shall be made available until June 30, 2026.

1151 SECTION 91. Item 7010-1192 of said section 2 of said chapter 140 is hereby amended
1152 by inserting after the word “Harwich” the following words:- and such funds shall be made
1153 available until June 30, 2026.

1154 SECTION 92. 8000-0313 of said section 2 of said chapter 140 is hereby amended by
1155 inserting after the word “Millbury”, the second time it appears, the following words:- and such
1156 funds shall be made available until June 30, 2026.

1157 SECTION 93. Said item 8000-0313 of said section 2 of said chapter 140 is hereby further
1158 amended by inserting after the word "data" the following words:- and such funds shall be made
1159 available until June 30, 2026.

1160 SECTION 94. Said item 8000-0313 of said section 2 of said chapter 140 is hereby further
1161 amended by striking out the words "for the purchase of a rescue truck for the fire department"
1162 and inserting in place thereof the following words:- for the fire department and such funds shall
1163 be made available until June 30, 2026.

1164 SECTION 95. Said item 8000-0313 of said section 2 of said chapter 140 is hereby further
1165 amended by inserting after the word “department”, the sixth time it appears, the following
1166 words:- and such funds shall be made available until June 30, 2026.

1167 SECTION 96. Item 8100-0111 of said section 2 of said chapter 140 is hereby amended
1168 by inserting after the word “offenses” the following words:- and such funds shall be made
1169 available until June 30, 2026.

1170 SECTION 97. Item 8100-0102 of said section 2 of said chapter 140 is hereby amended
1171 by striking out the figure “\$49,000,000”, each time it appears, and inserting in place thereof, in
1172 each instance, the following figure:- \$55,000,000.

1173 SECTION 98. Item 8324-0050 of said section 2 of said chapter 140 is hereby amended
1174 by inserting after the word “Hanover” the following words:- and such funds shall be made
1175 available until June 30, 2026.

1176 SECTION 99. Item 9110-9002 of said section 2 of said chapter 140 is hereby amended
1177 by striking out the words "for an electronic sign at the Council on Aging" and inserting in place

1178 thereof the following words:- for the Council on Aging and such funds shall be made available
1179 until June 30, 2026.

1180 SECTION 100. Section 127 of said chapter 140 is hereby amended by striking out the
1181 words “managed care organization reinvestment” and inserting in place thereof the following
1182 words:- Medicaid managed care organization.

1183 SECTION 101. Said section 127 of said chapter 140 is hereby further amended by
1184 striking out the words “total managed care organization services assessment” and inserting in
1185 place thereof the following words:- non-Medicaid managed care organization revenue.

1186 SECTION 102. Section 198 of said chapter 140 is hereby amended by striking out the
1187 figure “2025” and inserting in place thereof the following figure:- 2026.

1188 SECTION 103. Section 213 of said chapter 140 is hereby amended by striking out the
1189 words “December 31, 2025” and inserting in place thereof the following words:- December 31,
1190 2026.

1191 SECTION 104. Section 222 of said chapter 140 is hereby amended by striking out
1192 subsection (a).

1193 SECTION 105. Said chapter 140 is hereby further amended by inserting after section 253
1194 the following section:-

1195 Section 253A. Section 19 of said chapter 15D, as inserted by section 36, shall take effect
1196 on July 1, 2023.

1197 SECTION 106. Section 306 of chapter 238 of the acts of 2024 is hereby amended by
1198 striking out the words “December 1, 2025” and inserting in place thereof the following words:-
1199 January 31, 2026.

1200 SECTION 107. Item 1599-2625 of section 2A of chapter 1 of the acts of 2025 is hereby
1201 amended by adding the following words:- ; and provided further, that the comptroller shall
1202 transfer \$5,995,058 from this item to the General Federal Grants Fund for the purposes of item
1203 4000-0004 in the Massachusetts management accounting and reporting system.

1204 SECTION 108. Section 1 of chapter 7 of the acts of 2025 is hereby amended by adding
1205 the following sentence:- These sums shall be made available through the fiscal year ending June
1206 30, 2026.

1207 SECTION 109. Item 1596-2517 of section 2A of said chapter 7 is hereby amended by
1208 striking out the words “June 30, 2025” and inserting in place thereof the following words:- June
1209 30, 2027; provided further, that a preliminary report for outlining capital needs at only
1210 educational collaboratives shall be submitted not later than June 30, 2026.

1211 SECTION 110. Item 4200-0100 of section 2 of chapter 9 of the acts of 2025 is hereby
1212 amended by striking out the words “the Connecticut Valley YouthBuild program” and inserting
1213 in place thereof the following words:- New North Citizens Council, Inc. Youth Services.

1214 SECTION 111. Item 4403-2000 of said section 2 of said chapter 9 is hereby further
1215 amended by striking out the words “prior appropriation continued”.

1216 SECTION 112. Item 4408-1000 of said section 2 of said chapter 9 is hereby further
1217 amended by striking out the words “prior appropriation continued”.

1218 SECTION 113. Item 4510-0110 of said section 2 of said chapter 9 is hereby amended by
1219 striking out the words “a state primary care association qualified under section 330A(f)(1) of the
1220 Public Health Service Act, as codified at 42 U.S.C. section 254c(f)(1)” and inserting in place
1221 thereof the following words:- a state primary care association qualified under section 42 U.S.C.
1222 254b(l).

1223 SECTION 114. Item 0321-1510 of said section 2 of said chapter 9, as amended by
1224 section 81 of chapter 14 of the acts of 2025, is hereby further amended by striking out the figure
1225 “\$2,000,000” and inserting in place thereof the following figure:- \$3,000,000.

1226 SECTION 115. Item 0910-0200 of said section 2 of said chapter 9, as amended by
1227 sections 82 and 83 of chapter 14 of the acts of 2025, is hereby further amended adding the
1228 following words:- ; provided further, that not later than June 30, 2026, the inspector general shall
1229 conduct an investigation and submit a report to the house and senate clerks, the joint committee
1230 on public safety and homeland security and the house and senate committees on ways and means
1231 that shall include, but shall not be limited to: (i) a detailed accounting of expenditures made by
1232 the sheriffs’ offices in fiscal year 2025; (ii) an analysis of sheriffs’ offices’ compliance with
1233 chapter 29 of the General Laws in fiscal year 2025; (iii) a review of spending by sheriffs’ offices
1234 on activities not specifically required by statute, case law or court order and how such spending
1235 has changed over time; (iv) an analysis of compensation levels and changes over the preceding 3
1236 fiscal years, including comparisons among sheriffs’ offices and to the department of correction;
1237 and (v) recommendations to ensure compliance with said chapter 29, if necessary, among
1238 sheriffs’ offices; provided further, that each sheriff’s office shall comply with all requests from
1239 the office of the inspector general for any information deemed necessary to conducting said

1240 investigation and submitting said report, including, but not limited to, requests for the production
1241 of records.

1242 SECTION 116. Said item 0910-0200 of said section 2 of said chapter 9, as so amended,
1243 is hereby further amended by striking out the figure “\$6,256,039” and inserting in place thereof
1244 the following figure:- \$6,756,039.

1245 SECTION 117. Item 7004-0108 of said section 2 of said chapter 9 is hereby amended by
1246 inserting after the word “means”, the second time it appears, the following words:- and the clerks
1247 of the house of representatives and the senate.

1248 SECTION 118. Said item 7004-0108 of said section 2 of said chapter 9 is hereby further
1249 amended by striking out the words “and (vi)” and inserting in place thereof the following
1250 words:- (vi) total program expenditures and utilization trends, including repeat utilization of
1251 HomeBASE benefits; (vii) demographic information of applicants and participants, including
1252 household size, age, gender and immigration status, reported only in aggregate deidentified form;
1253 (viii) the extent of federal financial participation in expenditures under this program, including
1254 the percentage and dollar amount of costs reimbursed by the federal government, the sources of
1255 such reimbursement, and the resulting net state cost; and (ix).

1256 SECTION 119. Section 97 of chapter 14 of the acts of 2025 is hereby amended by
1257 striking out the word “January” and inserting in place thereof the following word:- September.

1258 SECTION 120. (a) There shall be within the executive office of public safety and
1259 security a sheriff fiscal oversight council.

1260 (b) The council shall consist of the secretary of public safety and security, who shall
1261 serve as co-chair; the secretary of administration and finance, who shall serve as co-chair; and 3
1262 members to be appointed by the governor, not less than 2 of whom shall have experience in the
1263 operation of correctional facilities and 1 of whom shall have experience in state government
1264 finance. The oversight council shall meet and hire staff as they deem necessary to ensure proper
1265 oversight of sheriff operations and finances.

1266 (c) The council, in carrying out this section, shall have access to all records, documents,
1267 accounts, correspondence and any other data and material that is maintained by the sheriffs'
1268 offices or other state agencies that the council deems necessary. Not less than monthly, each
1269 sheriff shall provide the council with information on the status of the revenues and expenses for
1270 their office's operating budget and on the status of revenues, contracting, procurement and
1271 authorized and actual spending for any capital projects. Such reports shall provide itemized year-
1272 to-date expenditures and detailed projections for anticipated expenses for the remainder of the
1273 fiscal year and be in a form prescribed by the council. The council shall submit such monthly
1274 reports to the secretary of public safety and security, the secretary of administration and finance,
1275 the inspector general, the clerks of the senate and house of representatives, the chairs of the
1276 senate and house committees on ways and means and the chairs of the joint committee on public
1277 safety and homeland security.

1278 (d) The council may set financial management metrics to ensure the fiscal and
1279 operational integrity of sheriff operations. The council may formulate and recommend a plan for
1280 a sheriff's office to stabilize and strengthen its finances, management, operations and asset
1281 conditions with a focus on maintaining activities specifically required by statute, case law or

1282 court order while limiting cost growth year over year and ensuring total annual expenditures do
1283 not exceed annual state appropriations.

1284 (e) If a sheriff's office fails to meet any financial management metrics or any a
1285 recommended plan prescribed under subsection (d), as determined by the council, the council
1286 shall take action to ensure the fiscal and operational integrity of such sheriff's office, which may
1287 include, but shall not be limited to, the authority to: (i) appoint a receiver to take operational and
1288 managerial control of the applicable sheriff's office; provided that such receiver shall have
1289 experience in the operation of correctional facilities; (ii) direct the comptroller not to certify any
1290 amounts for payment from a sheriff's office; and (iii) prohibit a sheriff's office from incurring
1291 any new expenditures or obligations without prior approval of the council for a period of time to
1292 be determined by the council.

1293 (f) The council shall dissolve on January 1, 2028; provided, however, that by majority
1294 vote of the council, the council may continue in existence to a date or in increments as
1295 determined by the council beyond January 1, 2028.

1296 SECTION 121. Notwithstanding any general or special law to the contrary, in fiscal year
1297 2025, the comptroller shall transfer \$200,000,000 from income surtax revenue, as defined by
1298 subsection (a) of section 2BBBBBB of chapter 29 of the General Laws, to the Student
1299 Opportunity Act Investment Fund established in section 35RRR of chapter 10 of the General
1300 Laws.

1301 SECTION 122. Notwithstanding any general or special law to the contrary, the
1302 comptroller shall, after making the required transfer under section 229 of chapter 140 of the acts
1303 of 2024, transfer the fiscal year 2025 consolidated net surplus pursuant to section 5C of chapter

29 of the General Laws to the Deficiency Reserve Fund established in section 2MMMMMM of chapter 29 of the General Laws.

SECTION 123. Notwithstanding section 68 of chapter 118E of the General Laws or any other general or special law to the contrary, the secretary of health and human services shall implement the health care-related assessment on managed care organization services, established under said section 68 of said chapter 118E, as a broad-based and uniform assessment, in accordance with 42 C.F.R. 433.68(b), with the managed care organization services assessment rate, as such term is defined in section 64 of said chapter 118E, implemented as the single broad-based and uniform rate applicable to all managed care organization services subject to assessment, as such term is defined in said section 64 of said chapter 118E. Upon converting the health care related assessment on managed care organization services to a broad-based and uniform assessment applicable to all managed care services subject to assessment, as such term is defined in said section 64 of said chapter 118E, the initial managed care organization services assessment rate shall be equal to the rate that had been applicable to the tax group containing commercial managed care services immediately preceding the implementation of the broad-based and uniform application of the assessment. The managed care organization services assessment rate for each calendar year, beginning the first January 1 following the conversion of the health care related assessment on managed care organization services to a broad-based and uniform assessment, shall be broad-based and uniform across all managed care services subject to assessment and shall continue to be implemented in a manner consistent with 42 CFR 433.68.

SECTION 124. Notwithstanding any general or special law to the contrary, section 18 of chapter 28 of the acts of 2023 shall not be in effect for the purposes of establishing the annual

1326 spending threshold set pursuant to subsection (f) of section 2BBBBBB of chapter 29 of the
1327 General Laws for the fiscal year ending June 30, 2027.

1328 SECTION 125. Notwithstanding any general or special law to the contrary, to the extent
1329 that immunization recommendations and requirements established in the commonwealth are
1330 conditioned upon alignment with the recommendations made by the Advisory Committee on
1331 Immunization Practices of the federal Centers for Disease Control and Prevention, the
1332 commissioner of public health shall review said recommendations and requirements established
1333 in the commonwealth and shall, in consultation with the committee on immunization protocols
1334 established in section 24N of chapter 111 of the General Laws, establish alternative standards as
1335 the commissioner may deem necessary to assure the maintenance of public health and the
1336 prevention of disease in the commonwealth.

1337 SECTION 126. Notwithstanding any general or special law to the contrary, there shall be
1338 a moratorium on the destruction of hospital records pursuant to section 36 of chapter 123 of the
1339 General Laws until such time as the department of mental health promulgates regulations
1340 defining a public notice process for the destruction of such records, as required under said
1341 section 36 of said chapter 123.

1342 SECTION 127. Notwithstanding any general or special law to the contrary, there shall be
1343 a moratorium on the destruction of hospital records pursuant to section 17 of chapter 123B of the
1344 General Laws until such time as the department of developmental services promulgates
1345 regulations defining a public notice process for the destruction of such records, as required under
1346 said section 17 of said chapter 123B.

SECTION 128. Notwithstanding any general or special law to the contrary, at the direction of the secretary of administration and finance, the comptroller shall make tax revenue collected from capital gains income above the threshold established in section 5G of chapter 29 of the General Laws in fiscal year 2025 available to the General Fund in the amount necessary to eliminate any deficits in the budgetary funds pursuant to section 5C of said chapter 29. After satisfying the previous provision, the comptroller shall transfer any remaining excess capital gains income as follows: (i) 85 per cent to the Deficiency Reserve Fund established in section 2MMMMMM of chapter 29 of the General Laws; (ii) 5 per cent to the Commonwealth's Pension Liability Fund established in paragraph (e) of subdivision (8) of section 22 of chapter 32 of the General Laws; (iii) 5 per cent to the State Retiree Benefits Trust Fund established in section 24 of chapter 32A of the General Laws; and (iv) 5 per cent to the Commonwealth Stabilization Fund established in section 2H of chapter 29 of the General Laws..

SECTION 129. Notwithstanding any general or special law to the contrary, in fiscal year 2025, the comptroller shall transfer \$10,000,000 from the General Fund to the Massachusetts Life Sciences Center established in section 3 of chapter 23I of the General Laws for programming and operations that advance efforts related to life sciences and spur economic growth in the commonwealth.

SECTION 130. Notwithstanding any general or special law to the contrary, in fiscal year 2025, the comptroller shall transfer \$100,000,000 from income surtax revenue, as defined by subsection (a) of section 2BBBBBB of chapter 29 of the General Laws, to the Public Higher Education Student Support Fund established in section 2NNNNNN of said chapter 29.

SECTION 131. Notwithstanding any general or special law to the contrary, the secretary of health and human services shall seek all required federal approvals the secretary deems necessary to implement sections 7, 8, 9, 24, 27, 30 and 31, including any required waivers under 42 C.F.R. 433.68 necessary to implement the updates to the hospital assessment described in section 67 of chapter 118E of the General Laws. If, after having received any required federal approval necessary to implement said sections 7, 8, 9, 24, 27, 30 and 31, such approval is withdrawn or is otherwise not in effect or if the secretary determines that a change in federal law or regulations or the administration of any such federal law or regulation requires a modification to the hospital assessment described in said section 67 of said chapter 118E or to the implementation of the Health Safety Net Trust Fund established in section 66 of said chapter 118E, the Non-Acute Care Hospital Reimbursement Trust Fund established in section 2WWW of chapter 29 of the General Laws, the Safety Net Provider Trust Fund established in section 2AAAAA of said chapter 29, the Hospital Investment and Performance Trust Fund established in section 2TTTTT of said chapter 29 or the Population Health Investment Trust Fund established in section 2UUUUU of said chapter 29, the secretary shall provide written notification to the joint committee on health care financing and the house and senate committees on ways and means and shall collaborate with Massachusetts Health and Hospital Association, Inc. to develop and consult on the implementation of alternatives.

Not later than February 15, 2026, and annually thereafter, the secretary shall report to the joint committee on health care financing and the house and senate committees on ways and means: (i) the amount of the assessment made and collected from each hospital pursuant to said section 67 of said chapter 118E; and (ii) the amounts transferred to, deposited in, expended from and transferred from the Hospital Investment and Performance Trust Fund established in said

1391 section 2TTTTT of said chapter 29 and the Population Health Investment Trust Fund established
1392 in said section 2UUUUU of said chapter 29.

1393 SECTION 132. Notwithstanding any general or special law to the contrary, the
1394 comptroller, at the direction of the secretary of administration and finance, shall transfer in both
1395 fiscal year 2026 and 2027 \$50,000,000 each such fiscal year from the Commonwealth Care Trust
1396 Fund established in section 2000 of chapter 29 of the General Laws to the Health Safety Net
1397 Trust Fund established in section 66 of chapter 118E of the General Laws; provided, however,
1398 that such transfers shall be in addition to any other transfers from said Commonwealth Care
1399 Trust Fund to said Health Safety Net Trust Fund required in fiscal years 2026 or 2027; provided
1400 further, that such funds must be used first to reduce the shortfall, as described in subsection (b)
1401 of section 69 of said chapter 118E, for health safety net fiscal years 2026 and 2027, and that any
1402 remaining funds may be used to reduce the shortfall in any other open health safety net fiscal
1403 year; and provided further, that the amount equal to any federal financial participation revenues
1404 claimed and received by the commonwealth for eligible expenditures made from said Health
1405 Safety Net Trust Fund with these funds transferred from said Commonwealth Care Trust Fund
1406 shall be credited to said Health Safety Net Trust Fund.

1407 SECTION 133. On or before November 30, 2025, the secretary of administration and
1408 finance, in consultation with the executive office of health and human services, shall estimate the
1409 amount of federal reimbursements claimed or anticipated to be claimed but not yet received in
1410 connection with costs incurred or balances designated in fiscal year 2025 from chapter 33 of the
1411 acts of 2025. For the purposes of certifying the amount of the consolidated net surplus in the
1412 budgetary funds at the close of fiscal year 2025 pursuant to section 5C of chapter 29 of the

1413 General Laws, the comptroller shall record the estimates for each budgetary fund made pursuant
1414 to this section as statutory receivables in fiscal year 2025.

1415 SECTION 134. Notwithstanding any general or special law to the contrary, for fiscal year
1416 2025, all abandoned property net revenue, as defined by section 5H of chapter 29 of the General
1417 Laws, shall remain in the General Fund.

1418 SECTION 135. (a) Notwithstanding sections 32 to 37, inclusive, of chapter 7C of the
1419 General Laws or any other general or special law to the contrary, the commissioner of capital
1420 asset management and maintenance, in consultation with the court administrator of the trial court
1421 of the commonwealth, may convey certain adjacent parcels of land in the city of Framingham
1422 acquired for the purpose of erecting a building for the first district court of southern Middlesex
1423 for nominal consideration to the city of Framingham; provided, however, that the commissioner
1424 shall not convey said parcels until: (i) the completion of a regional justice center at 121 Union
1425 avenue in the city of Framingham; and (ii) a determination by the commissioner, in consultation
1426 with the court administrator, that the parcels are surplus to the needs of the trial court. The
1427 parcels are located at 600 and 602 Concord street in the city of Framingham and are further
1428 described in deeds recorded in the Middlesex southern district registry of deeds in book 7816,
1429 page 107 and book 9859, page 328. The parcels shall be conveyed by deed without warranties or
1430 representations by the commonwealth and without restrictions on use or future conveyance by
1431 the city. The conveyance shall be subject to such additional conditions and restrictions as the
1432 commissioner, in consultation with the court administrator, may determine. The commissioner
1433 may, in consultation with the court administrator, determine the exact boundaries of the parcels
1434 prior to conveyance.

1435 (b) Notwithstanding any general or special law to the contrary, the city of Framingham
1436 shall be responsible for all costs and expenses of any transaction authorized by this section as
1437 determined by the commissioner of capital asset management and maintenance, including, but
1438 not limited to, the costs of any engineering, surveys, appraisals, title examinations, recording fees
1439 and deed preparation.

1440 SECTION 136. Notwithstanding section 23 of chapter 59 of the General Laws, section 31
1441 of chapter 44 of the General Laws or any other general or special law to the contrary, a city,
1442 town or district that was a member unit of the Hampshire County Group Insurance Trust in fiscal
1443 years 2026 or 2027 or before may amortize over the subsequent 5 fiscal years, in equal
1444 installments or more rapidly, the amount of its unanticipated Hampshire County Group Insurance
1445 Trust health insurance-related deficit for either fiscal year 2026 or fiscal year 2027, but not both;
1446 provided, however, that the member unit shall certify in writing to the division of local services
1447 of the department of revenue not later than June 30, 2027 that the member unit has withdrawn
1448 from the trust. The commissioner of revenue shall issue guidelines or instructions: (i) as to the
1449 amount that constitutes unanticipated health insurance-related deficit for fiscal year 2026 or 2027
1450 under this section; and (ii) for reporting the amortization of deficits authorized by this section.
1451 The local appropriating authority, as defined in section 21C of said chapter 59, shall adopt a
1452 deficit amortization schedule in accordance with the department of revenue's guidelines or
1453 instructions under this section before setting the municipality's fiscal year 2027 tax rate.

1454 SECTION 137. The Massachusetts Bay Transportation Authority, in consultation with
1455 the advisory board established in section 7A of chapter 161A of the General Laws, shall
1456 investigate, study and issue recommendations regarding the local assessments on cities and
1457 towns paid pursuant to section 9 of chapter 161A. The investigation shall include, but not be

1458 limited to: (i) a review of the assessment formula; (ii) a review of annual assessment increases
1459 and amounts; (iii) the impact of local assessments on municipal budgets and the budget of the
1460 authority; (iv) comparisons to local funding assessments received by peer transit systems and (v)
1461 possible adjustments, modifications or revisions to the assessment formula or municipal
1462 payments, including both the annual assessment amount and revised allocations, consistent with
1463 considerations of the relative service frequency, ridership, economic benefits and fiscal capacity
1464 of the contributing cities and towns. The authority shall submit a report of its findings and its
1465 recommendations to the clerks of the house of representatives and the senate and to the board of
1466 directors of the authority not later than December 31, 2026.

1467 SECTION 138. The salary adjustments and other economic benefits authorized by the
1468 following collective bargaining agreements shall be effective for the purposes of section 7 of
1469 chapter 150E of the General Laws:

1470 (1) the agreement between the University of Massachusetts and the Clerical/Technical
1471 Unit (CTU), MTA, Unit L92, effective from July 1, 2024 through June 30, 2027;

1472 (2) the agreement between the Barnstable County Sheriff's Office (BCSO) and the
1473 Barnstable County Captain Union, National Correctional Employees Union (NCEU), Unit L152,
1474 effective from July 1, 2024 through June 30, 2027;

1475 (3) the agreement between the Berkshire County Sheriff's Office (BCSO) and the
1476 National Correctional Employees Union, Unit SB1, effective from July 1, 2024 through June 30,
1477 2027;

1478 (4) the agreement between the Barnstable County Sheriff's Office and the National
1479 Correctional Employees Union Local 150, Unit S10, effective from July 1, 2024 through June
1480 30, 2027;

1481 (5) the agreement between the Dukes County Sheriff's Office and the Massachusetts
1482 Correction Officers Federated Union (MCOFU), Unit SD1, effective from July 1, 2025 to June
1483 30, 2028;

1484 (6) the agreement between the University of Massachusetts and the Massachusetts
1485 Teachers Association/Department Chairs (DCU), Boston Campus, Unit B50, effective from July
1486 1, 2024 through June 30, 2027;

1487 (7) the agreement between the Plymouth County Sheriff's Office and the New England
1488 Police Benevolent Association (NEPBA) Local 193, Unit SP5, effective from July 1, 2024
1489 through June 30, 2027;

1490 (8) the agreement between the University of Massachusetts and the International
1491 Brotherhood of Police Officers (IBPO) Local 399, Dartmouth Campus, Unit D84, effective from
1492 July 1, 2024 through June 30, 2027;

1493 (9) the agreement between the Essex County Sheriff's Department and the Essex County
1494 Correctional Officers Association (ECCOA), Unit SE2, effective from July 1, 2025 through June
1495 30, 2028;

1496 (10) the agreement between the University of Massachusetts and the Maintenance and
1497 Trade Union (MTU), Lowell Campus, Unit L93, effective from July 1, 2024 through June 30,
1498 2027;

1499 (11) the agreement between the Barnstable County Sheriff's Office (BCSO) and the
1500 Barnstable County Lieutenants Union, National Correctional Employees Union (NCEU), Unit
1501 S11, effective from January 1, 2025 through June 30, 2027; and

1502 (12) the agreement between the Board of Higher Education and the Massachusetts
1503 Community College Council Day Bargaining Unit, effective from July 1, 2025 through June 30,
1504 2026.

1505 SECTION 139. Sections 10, 25, 26, 28, 29, 100, 101 and 123 shall take effect on the later
1506 of: (i) the effective date of amendments to 42 CFR 433.68 disallowing the higher taxation of
1507 Medicaid taxable units as compared to non-Medicaid taxable units; or (ii) the end of any
1508 federally established or approved transition period applicable to the health care related
1509 assessment on managed care organization services, established under section 68 of chapter 118E
1510 of the General Laws, as amended by section 130 of chapter 140 of the acts of 2024. The
1511 executive office of health and human services shall notify the clerks of the house of
1512 representatives and the senate not later than 10 days after the effective date pursuant to this
1513 section.

1514 SECTION 140. Sections 7, 8, 9, 24, 27, 30 and 31, shall take effect upon the later of: (i)
1515 the date for which the secretary receives all federal approvals deemed necessary to implement
1516 said sections; or (ii) October 1, 2025.

1517 SECTION 141. Section 132 shall take effect October 1, 2025.